

**CHAPTER ccix.**

An Act to authorise the North British Railway Company to construct certain new railways widenings and other works to confer further powers upon the Company and upon other companies in connexion with their respective undertakings to amalgamate the Aberlady Gullane and North Berwick Railway Company the Newport Railway Company and the Eyemouth Railway Company with the Company to transfer to and vest in the Company the undertaking of the Borrowstounness Harbour Commissioners to enable the Burntisland Harbour Commissioners to borrow and the Company to advance them further money to authorise the Company to enter into working and other agreements with the Invergarry and Fort Augustus Railway Company to raise additional capital and for other purposes. A.D. 1900.

[6th August 1900.]

**W**HEREAS it is expedient that the North British Railway Company (in this Act called "the Company") should be authorised as in this Act provided—

To make and maintain certain widenings of their Stirlingshire Midland Junction Railway and certain new railways in extension of and in connexion with that railway ;

To make and maintain a widening of their branch railway from South Leith to Portobello ;

To make and maintain a railway to form a junction between the railway authorised by the North British Railway (Waverley Station &c.) Act 1891 and the railway of the Company from Easter Road to Piershill ;

To make and maintain in connexion with their system certain new railways in Glasgow ;



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To make and maintain a railway in the county of Fife from their Lumphinnans and Kelty Branch to join their Dunfermline and Thornton Railway;

To alter in the borough and town of Berwick-upon-Tweed a portion of the public road leading from that place to Duns and Edinburgh;

To stop up and discontinue certain footpaths;

To acquire additional lands for the general purposes of their undertaking and to empower them to hold certain lands which have been already acquired by them:

And whereas it is expedient—

To empower the Company and the Caledonian Railway Company jointly to acquire certain lands for the purposes of the Dundee and Arbroath Joint Line;

To empower the Aberlady Gullane and North Berwick Railway Company to acquire additional lands for the general purposes of their undertaking;

To sanction and confirm the purchase by the Company and the sale and disposition by the lord provost magistrates and council of the city of Edinburgh as governors and administrators of Trinity Hospital of certain lands in the parish of Leith;

To revive and extend the time limited by the North British Railway Act 1895 for the compulsory purchase of lands and to extend the time for the completion of the railways and works by that Act authorised;

To further extend the respective periods limited by the Aberlady Gullane and North Berwick Railway Act 1893 as extended by the North British Railway Act 1896 and the North British Railway (General Powers) Act 1898 for the compulsory purchase of lands and for the completion of the railways and works authorised by the first-mentioned Act so far as the same are not already completed;

To further extend the respective periods limited by the East Fife Central Railway Act 1893 as extended by the North British Railway Act 1895 and the North British Railway (General Powers) Act 1898 for the compulsory purchase of lands and for the completion of the railways and works authorised by the first-mentioned Act so far as the same are not already completed;

To extend the respective periods limited by the Newburgh and North Fife Railway Act 1897 for the compulsory purchase



of lands and the completion of the railways and works by that Act authorised; A.D. 1900.

To further extend the time limited by the North British Railway (General Powers) Act 1891 as extended by the North British Railway (General Powers) Act 1897 for the construction by the Company of the principal works described in section 4 of the Alloa Harbour Act 1889 and also for executing the several works mentioned in section 13 of the last-mentioned Act;

To extend the time for the sale of certain of the superfluous lands of the Company:

And whereas by the Aberlady Gullane and North Berwick Railway Act 1893 the Aberlady Gullane and North Berwick Railway Company (in this Act called "the Aberlady Company") were incorporated:

And whereas the Company under agreement scheduled to and confirmed by the last-mentioned Act work and use the undertaking of the Aberlady Company:

And whereas the authorised share capital of the Aberlady Company consists of thirty-three thousand pounds of ordinary stock on which a dividend of four and a-half per centum is under the said agreement contingently guaranteed by the Company and thirty-three thousand pounds of four per centum preference stock and the Aberlady Company have created and issued four per centum debenture stock to the amount of twenty-two thousand pounds:

And whereas by the Newport Railway Act 1866 the Newport Railway Company (in this Act called "the Newport Company") were incorporated and further powers were conferred upon the Newport Company by further Acts passed in the years one thousand eight hundred and sixty-seven and one thousand eight hundred and seventy:

And whereas the authorised share capital of the Newport Company consists of forty-six thousand pounds of ordinary stock and the Newport Company have created and issued debenture stock to the amount of fifteen thousand three hundred pounds consisting of four thousand two hundred pounds debenture stock bearing interest at four per centum five thousand one hundred pounds at three and a half per centum and six thousand pounds at three per centum:

And whereas the undertaking of the Newport Company is leased to the Company for a period of nine hundred and ninety-nine years from the first day of January one thousand eight hundred and eighty-eight at a fixed yearly rental of three thousand pounds:



A.D. 1900.      And whereas under the powers of the Railways Construction  
— Facilities Act 1864 the Eyemouth Railway Company (in this Act  
called “the Eyemouth Company”) were by the Eyemouth Railway  
Certificate 1884 incorporated :

And whereas the authorised share capital of the Eyemouth  
Company consists of thirty thousand pounds of ordinary stock of  
which capital five thousand one hundred and fifty pounds is unissued  
and the Eyemouth Company have created and issued debenture  
stock to the amount of five thousand pounds bearing interest at  
three per centum and have unexercised borrowing powers to the  
amount of five thousand pounds :

And whereas the undertaking of the Eyemouth Company is  
leased to the Company for a period of nine hundred and ninety-nine  
years from the first day of January one thousand eight hundred  
and ninety-one at a yearly rent of such a sum as will enable  
the Eyemouth Company to pay a dividend of three per centum  
on their expended capital and also to pay their establishment  
charges :

And whereas it is expedient that the Aberlady Company the  
Newport Company and the Eyemouth Company should respectively  
be amalgamated with the Company on the terms in this Act  
mentioned :

And whereas by the Borrowstounness Town and Harbour Act  
1875 the former Acts relating to the town and harbour of  
Borrowstounness were repealed and a new body of trustees was  
incorporated for carrying that Act into execution :

And whereas by the Borrowstounness Town and Harbour  
(Amendment) Act 1878 the harbour undertaking of the said trustees  
was transferred to the Borrowstounness Harbour Commissioners (in  
this Act called “the Bo’ness Commissioners”) and the Company  
were empowered to lend the Bo’ness Commissioners the sum of one  
hundred and eighty-five thousand pounds :

And whereas by the Borrowstounness Harbour Act 1883 the  
Bo’ness Commissioners were authorised to execute further works  
and the Company were empowered to lend the Bo’ness Commissioners  
the further sum of fifty thousand pounds :

And whereas by the North British Railway (Amalgamations &c.)  
Act 1880 and the North British Railway Act 1885 the Company  
were authorised to guarantee interest on the mortgage debt not  
exceeding two hundred and thirty-five thousand pounds of the  
Bo’ness Commissioners and by the North British Railway Act 1887  
the Company were authorised to guarantee repayment of the  
principal amount of the said mortgage debt :



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And whereas the liabilities of the Bo'ness Commissioners as at thirty-first July one thousand eight hundred and ninety-nine consisted of the said mortgage debt of two hundred and thirty-five thousand pounds and for temporary loans and interest due to the Company and other debts a further sum of three hundred and ten thousand five hundred and eighty-four pounds four shillings and ninepence making a total of five hundred and forty-five thousand five hundred and eighty-four pounds four shillings and ninepence:

And whereas the railway of the Company affords the only access by railway to the town and harbour of Borrowstounness:

And whereas it is expedient that the harbour undertaking of the Bo'ness Commissioners should be transferred to and vested in the Company on the terms in this Act mentioned:

And whereas by the Burntisland Harbour Act 1881 the Burntisland Harbour Commissioners (in this Act called "the Burntisland Commissioners") were incorporated and the harbour undertaking property rights powers authorities duties and liabilities with respect to the harbour which prior to the passing of that Act were vested in or belonged to the town council of Burntisland were transferred to and vested in the Burntisland Commissioners:

And whereas the railway of the Company forms the only access by railway to the said harbour of Burntisland:

And whereas under the powers conferred on the Company by the North British Railway Act 1873 and subsequent Acts the Company have from time to time advanced money to the Burntisland Commissioners for the purposes of the said harbour and the amount due and owing to the Company by the Burntisland Commissioners as at thirtieth September one thousand eight hundred and ninety-nine amounts to the sum of two hundred and ninety-four thousand eight hundred and sixty-one pounds:

And whereas the Burntisland Commissioners are in course of constructing the new wet dock and other works authorised by the Burntisland Harbour Act 1896 and the borrowing powers conferred by that Act have been found to be insufficient and it is expedient that the Burntisland Commissioners should be authorised to borrow further money and also that the Company should be empowered to advance additional money on loan to the Burntisland Commissioners:

And whereas it is expedient that the Company on the one hand and the Invergarry and Fort Augustus Railway Company (in this Act called "the Invergarry Company") on the other hand should be authorised to enter into such working and traffic agreements as are in this Act provided for:

And whereas it is expedient that the Company should be empowered to raise additional capital for the purposes of this Act



A.D. 1900. and for the general purposes of their undertaking and to apply their corporate funds to such purposes :

And whereas plans and sections showing the proposed new railways widenings and other works by this Act authorised to be constructed and plans of the lands by this Act authorised to be acquired and appropriated and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the principal sheriff clerks of the several counties within which those works will be constructed and those lands are situate which plans sections and books of reference are in this Act respectively referred to as the deposited plans sections and books of reference :

And whereas it has been found desirable to alter the lines and levels of certain of the railways by this Act authorised and supplemental plans and sections (in this Act referred to as "the supplemental plans and sections") showing the lines and levels of such altered railways and also books of reference (in this Act referred to as "the supplemental books of reference") containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands affected by the said alterations have been deposited with the principal sheriff clerk of the county of Stirling and such altered railways are in this Act referred to as Railways Nos. 3A 4A 5A and 6A :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title. 1. This Act may for all purposes be cited as the North British Railway (General Powers) Act 1900.

Incorporation of general Acts. 2. The Lands Clauses Acts the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the railways widenings and works in Scotland and the Railways Clauses Consolidation Act 1845 with respect to the alteration of road and works in England Part I. (relating to construction of a railway) Part II. (relating to extension of time) Part III. (relating to working agreements) and Part V. (relating to amalgamation) of the Railways Clauses Act 1863 and the provisions of the Companies Clauses Consolidation (Scotland)



Act 1845 with respect to the several matters following (that is to say) :— A.D. 1900.

- The distribution of the capital of the Company into shares ;
  - The transfer or transmission of shares ;
  - The payment of subscriptions and the means of enforcing the payment of calls ;
  - The forfeiture of shares for nonpayment of calls ;
  - The remedies of creditors of the Company against the shareholders ;
  - The borrowing of money by the Company on mortgage or bond ;
  - The conversion of the borrowed money into capital ;
  - The consolidation of the shares into stock ;
  - The giving of notices ; and
  - The provision to be made for affording access to the special Act ;
- and Parts I. II. and III. of the Companies Clauses Act 1863 (relating respectively to cancellation and surrender of shares to additional capital and to debenture stock) as amended by subsequent Acts are (except where expressly varied by or inconsistent with this Act) incorporated with and form part of this Act.

**3. In this Act—**

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction :

Interpretation.

The expression “the new railways” means Railways Nos. 3A 4A 5A 6A 8 9 10 11 and 12 by this Act authorised :

The expression “the Bo’ness Harbour Acts” means the Borrowstounness Town and Harbour Act 1875 the Borrowstounness Town and Harbour (Amendment) Act 1878 the Borrowstounness Harbour Act 1883 and the Borrowstounness Town Improvement and Harbour Act 1897 :

The expression “the Bo’ness Commissioners” means the Borrowstounness Harbour Commissioners constituted and incorporated by the Borrowstounness Town and Harbour (Amendment) Act 1878 :

The expression “the Bo’ness Harbour undertaking” means the harbour and docks at Borrowstounness and all the lands buildings property machinery cranes and appliances belonging to the Bo’ness Commissioners and all the



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powers rights jurisdictions authorities and privileges of and exerciseable by the said commissioners :

The expression "the Burgh Commissioners" means the Commissioners of the burgh of Borrowstounness acting under the Burgh Police (Scotland) Act 1892 and includes the Borrowstounness town trustees and the town trustees under the Bo'ness Harbour Acts :

The expression "the Burntisland Commissioners" means the Burntisland Harbour Commissioners incorporated by the Burntisland Harbour Act 1881 :

The expression "the town council" means the magistrates and council of the royal burgh of Burntisland :

The expression "the Burntisland Harbour Acts" means the Burntisland Harbour Acts 1870 to 1896.

In the Acts incorporated herewith the word "schoolmasters" means clerks of parish councils or persons acting as such clerks.

Power to make widenings new railways and other works.

4. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections and on the supplemental plans and sections relating thereto the widenings and the new railways and work herein-after described with all proper stations sidings approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the said plans and described in the deposited books of reference and in the supplemental books of reference relating thereto as may be required for those purposes.

The widenings new railways and work herein-before referred to and authorised by this Act are—

- (1) A Railway No. 1 1 mile 1 furlong 5·15 chains in length being a widening of part of the Stirlingshire Midland Junction Railway of the Company commencing by a junction with the Carmuir Fork Line of the Caledonian Railway Company at a point one hundred and twenty-seven yards or thereabouts measured in a westerly direction from the junction of the said Carmuir Fork Line with the said Stirlingshire Midland Junction Railway and terminating by a junction with the said Stirlingshire Midland Junction Railway at a point forty-three yards or thereabouts measured in a westerly direction from the west end of the swing bridge by which that railway is carried over the Forth and Clyde Canal :



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- (2) A Railway No. 2 7 furlongs 6·13 chains in length being a widening of part of the said Stirlingshire Midland Junction Railway commencing by a junction with that railway at a point one hundred yards or thereabouts measured in an easterly direction from the west end of the before-mentioned swing bridge and terminating by a junction with the Grangemouth Branch of the Caledonian Railway Company at a point ninety yards or thereabouts measured in an easterly direction from the Grangemouth Branch Junction :
- (3) A Railway No. 3A 1 mile 4 furlongs 3·25 chains in length commencing by a junction with the Stirlingshire Midland Junction Railway at a point two hundred and seventy yards or thereabouts measured in a westerly direction from the west end of the before-mentioned swing bridge and terminating at the west side of the road passing along the east side of Abbot's Ironworks at Dalderse and two hundred and forty yards or thereabouts measured along that road in a northerly direction from the Forth and Clyde Canal :
- (4) A Railway No. 4A 2 furlongs 0·32 chain in length commencing by a junction with ~~Railway No. 3A~~ at a point two hundred and ten yards or thereabouts measured in a southerly direction from the Free Church Manse at Bainsford and terminating at a point at the south-west end of Burnbank Iron Foundry and thirty yards or thereabouts from the Forth and Clyde Canal :
- (5) A Railway No. 5A 1 furlong 5·63 chains in length commencing by a junction with Railway No. 3A at a point six hundred yards or thereabouts measured in a westerly direction from the point hereinbefore described as the termination of the said Railway No. 3A and terminating at a point on the north side of Castlelaurie Ironworks and one hundred and thirty yards or thereabouts measured in a northerly direction from the Forth and Clyde Canal :
- (6) A Railway No. 6A 1 furlong 8·03 chains in length commencing by a junction with Railway No. 3A at a point five hundred and ninety yards or thereabouts measured in a westerly direction from the point hereinbefore described as the point of termination of the said Railway No. 3A and terminating at the north-west side of Abbot's Ironworks and one hundred and sixty yards or thereabouts measured in a northerly direction from the Forth and Clyde Canal :
- (7) A Railway No. 7 1 mile 7 furlongs 5·75 chains in length being a widening of part of the Company's branch from South



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Leith to Portobello commencing in the parish of Leith and county of Edinburgh by a junction with the said branch at a point opposite Seafield Lodge at the east end of the new reclamation embankment and terminating in the parish of Duddingston and county of the city of Edinburgh by a junction with the railway of the Company at Portobello Station at a point one hundred and ten yards or thereabouts measured in an easterly direction from the booking office on the main line platform at Portobello Station :

- (8) A Railway No. 8 2 furlongs 4·20 chains in length commencing in the parish of Leith in the county of Edinburgh by a junction with the railway authorised by the North British Railway (Waverley Station &c.) Act 1891 at a point two hundred and twenty yards or thereabouts measured in a northerly direction from the point where the said authorised railway crosses the Company's railway from Easter Road to Piershill and terminating in the city parish of Edinburgh in the county of the city of Edinburgh and in the city and royal burgh of Edinburgh by a junction with the last-mentioned railway at a point fifteen yards or thereabouts measured in a westerly direction from the bridge carrying the Lochend Road over the said last-mentioned railway :
- (9) A Railway No. 9 4 furlongs 6·27 chains in length commencing by a junction with the Company's railway from Springburn to College Station Glasgow at a point one hundred yards or thereabouts measured in a westerly direction from the bridge by which Whitevale Street is carried over that railway and terminating in College Station goods yard at a point ten yards or thereabouts measured in a westerly direction from the west side of Barrack Street and fifteen yards measured in a northerly direction from the before-mentioned railway :
- (10) A Railway No. 10 1 furlong 7·65 chains in length commencing by a junction with the before-mentioned railway from Springburn to College Station at a point sixteen yards or thereabouts measured in a westerly direction from the west side of the bridge by which Hill Street is carried over the last-mentioned railway and terminating at a point eighty yards or thereabouts measured in a westerly direction from the junction of Barrack Street with Gallowgate and sixteen yards or thereabouts north from the north side of Gallowgate in Glasgow :
- (11) A Railway No. 11 7·15 chains in length commencing by a junction with the end of the Company's sidings on the east



side of Bluevale Street and terminating by a junction with the end of other sidings of the Company fifty yards or thereabouts measured in a westerly direction from the west side of Whitevale Street: A.D. 1900.

(12) A Railway No. 12 2 furlongs 1·30 chains in length commencing by a junction with the Lumphinnans and Kelty Branch of the Company at a point four hundred and twenty yards or thereabouts measured in a northerly direction along that railway from the signal cabin at the junction of that railway with the Dunfermline and Thornton Railway of the Company and terminating by a junction with the said last-mentioned railway at a point five hundred and ten yards or thereabouts measured in a north-easterly direction along that railway from the before-mentioned signal cabin:

(13) An alteration of part of the public road leading from Berwick-upon-Tweed to Duns and Edinburgh wholly situate in the parish of Berwick-upon-Tweed in the county of the in the parish of Berwick-upon-Tweed commencing at a borough and terminating thereabouts measured along the said point thirty yards or thereabouts from the centre of the arch road in a south-easterly direction from the railway which carries the said road over the main line of the railway of the Company at Berwick Station and terminating at a point ninety-five yards or thereabouts measured along the said road in a north-westerly direction from the centre of the said arch.

5. If the new railways by this Act authorised are not respectively completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing any of the said railways then not completed or otherwise in relation thereto shall cease except as to so much thereof respectively as shall then be completed.

Period for completion of new railways.

6. The following provisions shall unless otherwise agreed between the Company and the Caledonian Railway Company apply to Railways Nos. 1 2 3A 4A 5A and 6A by this Act authorised and any branch railways or sidings connected therewith:—

Provisions as to construction of Railways 1 2 3A 4A 5A and 6A.

(1) The plans and sections of the junctions of Railways No. 1 and No. 2 with the Carmuir Fork Line and with the Grangemouth Branch of the Caledonian Railway Company respectively shall be subject to adjustment between the Company and the Caledonian Railway Company or failing agreement by an engineer to be appointed by the Board of Trade on the application of either Company and the Company shall not take or acquire any part of the Caledonian Railway



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Company's Carmuir's Fork Line or Grangemouth Branch but only an easement or right of using the same for the purposes of the junctions and the works at the said junctions shall be carried out at the sight and to the satisfaction of the engineer of the Caledonian Railway Company :

- The Company in constructing Railway No. 1 shall in connexion therewith make and construct a junction line between the said Railway No. 1 near its commencement and the Stirlingshire Midland Junction Railway of the Company and the plans and sections of such junction line shall be subject to adjustment as aforesaid. The Company in constructing Railway No. 3A shall in addition to the junction of that railway with the said Stirlingshire Midland Junction Railway make and construct a junction of said Railway No. 3A with said Railway No. 1 near the commencement of said Railway No. 3A and the plans and sections of such junction shall be subject to adjustment as aforesaid.
- (2) The plans and sections according to the aforesaid :  
to construct Railway No. 3A shall be subject to adjustment between the Company and the Caledonian Railway Company or failing agreement by an engineer to be appointed by the Board of Trade on the application of either Company :
- (3) Railways Nos. 1 2 and 3A shall be constructed by the Company with two running lines and all branch railways or sidings connecting therewith shall be so constructed that shunting operations may be performed clear of such running lines :
- (4) All running powers rights facilities and privileges which the Caledonian Railway Company possess or are entitled to or may exercise over upon or with reference to the Stirlingshire Midland Junction Railway of the Company shall extend and apply to Railways Nos. 1 2 3A 4A 5A and 6A by this Act authorised and to any additional branch railways or sidings made in connexion therewith to serve any works which have been or may be established to the west of the longitudinal line of the point of termination of Railway No. 3A :
- (5) For the purpose of the tolls rates and charges payable by the Caledonian Railway Company to the Company in respect of the use of the said railways and of any such branch railways or sidings as aforesaid and for all other purposes Railways Nos. 1 2 3A 4A 5A and 6A by this Act authorised shall be deemed part of the Stirlingshire Midland Junction Railway of the Company and in the case of traffic passing over the



existing Stirlingshire Midland Junction Railway or any part thereof and over the said Railways Nos. 1 2 and 3A 4A 5A and 6A and any such additional branch railways or sidings as aforesaid or any of them or any part of any of them no additional or further tolls rates or charges shall be payable by the Caledonian Railway Company to the Company over and above the tolls rates and charges now payable by the Caledonian Railway Company to the Company in respect of the use of the existing Stirlingshire Midland Junction Railway :

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- (6) Railways Nos. 3A 4A 5A and 6A by this Act authorised and any such branch railways or sidings as aforesaid shall be constructed at the sole cost of and shall be owned exclusively by the Company but the Caledonian Railway Company shall in respect of the construction thereof pay to the Company by half-yearly payments at Whitsunday and Martinmas a sum equal to four pounds per centum per annum on one half of the total cost (including land) of constructing those railways branch railways or sidings as such cost shall be agreed upon between the Company and the Caledonian Railway Company or failing agreement be determined by an arbitrator to be appointed by the Board of Trade on the application of either Company and such sum shall be in addition to the tolls rates and charges payable by the Caledonian Railway Company in respect of the use of the said railways branch railways or sidings.

7. If the Company fail within the period limited by this Act to complete the new railways the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period limited until the uncompleted railway or railways is or are completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of such railway or railways and the said penalty may be applied for by any landowner or other person claiming to be compensated in reference to the railway or railways in respect of which the penalty has been incurred in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854.

Penalty imposed unless new railways opened within time limited.

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Queen's and Lord Treasurer's Remembrancer on behalf of the Court of Exchequer in Scotland in the



A.D. 1900. bank and to the credit named in such warrant or order and shall not be paid thereout except as hereinafter provided.

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company was prevented from completing or opening the uncompleted railway or railways by unforeseen accident or circumstances beyond their control. Provided that want of sufficient funds shall not be held to be a circumstance beyond their control.

Application of penalty for non-completion of new railways.

8. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the Edinburgh Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the new railways or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the Court of Exchequer in Scotland may seem fit And if no such compensation is payable or if a portion of the sum ~~or sums of money so recovered~~ by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

Widenings and new railways to form part of Company's undertaking.

9. With respect to tolls rates and charges and for all other purposes whatsoever the widenings and new railways shall form part of the Company's undertaking.

Stopping up footpaths.

10. Subject to the provisions of this Act the Company may exercise the powers hereinafter mentioned:—

They may stop up and discontinue so much of the footpath in the city and royal burgh city parish and county of the city of Edinburgh leading from London Road to Royal Park Place as is situate between London Road and the south side of the Company's Edinburgh and Berwick Railway:



They may stop up and discontinue so much of the footpath in the parish of Berwick-upon-Tweed in the county of the borough and town of Berwick-upon-Tweed leading from Chapel Lodge south-eastwards to near Magdalen Field House and Bell Tower as is situate between the west side of the lands south of the road leading from Chapel Lodge eastwards over the Company's Edinburgh and Berwick Railway to the seashore near Dodes Well which may be acquired by the Company under the powers of this Act and the east side of the said lands : A.D. 1900.

The site and soil of the said footpaths so to be stopped up and discontinued shall if the Company are or if and when under the powers of this Act or of any other Acts relating to the Company they become the owners of the lands on both sides thereof be from the time of the stopping up thereof respectively vested in the Company for the purposes of their undertaking.

11. Subject to the provisions of this Act the Company may from time to time enter upon take and use for the purposes of their undertaking the lands hereinafter described and delineated on the deposited plans and described in the deposited books of reference thereto (that is to say) :— Power to take additional lands.

In the county of Fife—

- (A) Certain lands in the parish of Beath on the east side of and adjoining Kelty Station :
- (B) Certain lands in the parish of Beath on the east side of and adjoining the Company's railway from Cowdenbeath to Kinross Junction near Kelty Station :
- (C) Certain lands in the burgh and parish of Crail on the west side of and adjoining the Company's Anstruther and St. Andrews Railway at Crail Station :
- (D) Certain lands in the parish of St. Andrews on the north side of and adjoining the said Anstruther and St. Andrews Railway at Stravithie Station :
- (E) Certain lands in the parish of Dysart on the north side of and adjoining the Company's railway from Dunfermline to Thornton at Ore Bridge Siding :
- (F) Certain lands in the parish of Scoonie on the south side of and adjoining the Company's Leven and East of Fife Railway on part of which lands the siding to Kirkland Works is situate :
- (G) Certain lands in the parish of Elie on the south side of and adjoining the Company's railway from Thornton to Anstruther at Elie Station :



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(H) Certain lands in the burgh of Kirkcaldy in the parishes of Kirkcaldy and Abbotshall on the east side of and adjoining Kirkcaldy Station and on the south-west side of and adjoining Bennoch Road :

(I) Certain lands in the burgh of Kirkcaldy in the parishes of Abbotshall and Kirkcaldy on the east side of and adjoining the Company's railway south of the lands last described :

In the county of Lanark—

Certain lands in the parish of Cadder on each side of and adjoining the Company's Edinburgh and Glasgow Railway between the road from Littlehill to Westerhill and the road from Mid Boghead to Loch :

In the county of Dumbarton—

Certain lands in the parish of Old Kilpatrick in the burgh of Clydebank on the south-west side of Cyprus Place Yoker and bounded on the north-east by Cyprus Place and on the south-west by lands owned by the Company :

In the county of the city of Glasgow—

(A) Certain lands in the city and royal burgh of Glasgow in the parish of Glasgow on the north side of George Square and on the west side of North Frederick Street at the junction of that square and that street :

(B) Certain lands in the city and royal burgh of Glasgow in the parish of Glasgow on the north side of the College Goods Station of the Company and near Burnside Street :

In the county of the city of Edinburgh—

Certain lands in the city and royal burgh of Edinburgh in the city parish of Edinburgh on the north side of and adjoining the Company's Edinburgh and Berwick Railway and between the west end of Stanley Place and the Company's sheet store in London Road :

In the county of the borough and town of Berwick-upon-Tweed—

Certain lands in the parish of Berwick-upon-Tweed in the borough and town of Berwick-upon-Tweed (namely) :—

(A) Certain lands on each side of and adjoining the Company's Edinburgh and Berwick Railway south of the road leading from Chapel Lodge eastwards over the said railway to the seashore near Dodes Well :

(B) Certain lands on the east side of and adjoining the Company's cattle-loading bank at Berwick Station :

(C) Certain lands on the west side of and adjoining Berwick Station south of the public road from Berwick to Duns.



12. The Company may hold and may use and appropriate for the purposes of their undertaking the several lands hereinafter described which have been already acquired by them (that is to say) :—

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Company  
may hold  
certain lands  
already  
acquired.

(1) Certain lands in the city and royal burgh of Glasgow in the county of the city of Glasgow (namely) :—

- (A) Certain lands situate on the east side of and adjoining Springburn Road at Sighthill Goods Station :
- (B) Certain lands on the east side of and adjoining the Company's railway from Alexandra Park Station to Barnhill Station and bounded on the west by that railway on the north by the Glasgow Garnkirk and Coatbridge Branch of the Caledonian Railway and on the east and south by the original line of Germiston or Garngad Burn :
- (C) Certain lands on the west side of and adjoining the Company's railway from Garngad Station to Alexandra Park Station along which railway they extend two hundred and eighty-two yards southwards from Blochairn Road :
- (D) Certain lands situate on the north side of and adjoining Sighthill Goods Station of the Company at the east end of Auchintosham Terrace and containing nineteen hundred and two square yards :
- (E) Certain lands situate on the east side of the Company's Edinburgh and Glasgow Railway at Queen Street Station comprising numbers 375 377 379 and 381 Parliamentary Road and numbers 107 and 109 North Hanover Street :

(2) Certain lands in the burgh of Alloa in the parish of Alloa in the county of Clackmannan situate on the north-east side of and adjoining the Company's goods station at Alloa (viz.) :—

- (A) Certain lands bounded on the north-east by Bedford Place along which they extend forty-four yards south-eastwards from a point on the south side thereof forty-four yards south-east from the east side of Glasshouse Loan :
- (B) Certain lands bounded on the south-east by the lands last described on the north-east by Bedford Place and on the north-west by the Company's railway from Alloa Station to Alloa Harbour :

(3) Certain lands in the burgh of Airdrie in the parish of New Monkland in the county of Lanark situate on the east side of and adjoining the Company's goods station at Hallcraig



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Street and bounded on the south by that street and on the west and north by the said goods station :

(4) Certain lands in the parish of Liberton in the county of Edinburgh (namely) :—

(A) Certain lands on the south side of and adjoining the Company's railway from Duddingston to Portobello along which they extend 57 chains westwards from the east side of Niddrie Burn :

(B) Certain lands on the north side of and adjoining the said railway along which they extend 22 chains westwards from the east side of the said burn :

(C) Certain lands in two parcels on the south-east side of and adjoining the said railway along which one parcel extends 128 yards south-westwards and the other 100 yards north-eastwards from Peffermill Road :

(5) Certain lands at Yoker in the parish of Old or West Kilpatrick in the county of Dumbarton (namely) :—

(A) Certain lands situate on the south-west side of the road from Dumbarton to Glasgow to the west-north-west of McArthur Street extending to 9 acres 2 roods and 36 poles formerly owned by Napier Shanks and Bell :

(B) Certain lands between the said road and the lands of the Company's Glasgow Yoker and Clydebank Railway and to the south-east of the lands on which is situate the siding from that railway to the shipbuilding yard of Napier and Miller Limited and extending to 1 acre 2 roods and 39 · 48 poles :

(C) Certain lands between the said road and the lands of the said railway and on the west side of and adjoining lands acquired by the Glasgow Yoker and Clydebank Railway Company from the Reverend John Wilson :

(D) Certain lands on the north-east side of and adjoining the said road 52 yards north-west of the centre of Hamilton Street and extending to 3,733 $\frac{1}{2}$  square yards :

(6) Certain lands in the city and royal burgh of Perth in the county of Perth on the north side of and adjoining the Company's goods station at Perth and bounded on the south and east by that station on the west by an access thereto from Glasgow Road and on the north by that road :

(7) Certain lands in the parish of Falkirk in the county of Stirling on the south side of and adjoining the Company's Stirlingshire Midland Junction Railway along which they extend 30 chains westwards from the public road from Larbert to Camelon :



And the expenditure of money by the Company in or about the purchase of the said lands is hereby sanctioned and confirmed But nothing in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance having been or being caused or permitted by them upon any lands acquired by them as aforesaid and to which this section relates. A.D. 1900.

**13.** The purchase by the Company and the sale and disposition by the lord provost magistrates and council of the city of Edinburgh as governors and administrators of Trinity Hospital of certain lands in the parish of Leith in the county of Edinburgh extending to 4·558 acres situate on the east side of and adjoining the railway of the Company authorised by the North British Railway (Waverley Station &c.) Act 1891 and certain other lands in the said parish and county extending to 10·445 acres situate on the west side of and adjoining the said railway and the payment of the purchase money thereof by the Company to the said lord provost magistrates and council are hereby sanctioned and confirmed But nothing in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance having been or being caused or permitted by them upon the lands acquired by them as aforesaid. Confirming purchase of lands from corporation of Edinburgh as Governors of Trinity Hospital.

**14.** The agreement set forth in the Third Schedule to this Act between the Company of the first part and the Right Honourable the Earl of Moray of the second part as to the acquisition by the Company for the purposes of the intended Railway No. 8 of certain lands near Lochend is hereby confirmed and made binding on the parties thereto. Confirming agreement with Earl of Moray as to purchase of certain lands.

**15.** Subject to the provisions of this Act the Company and the Caledonian Railway Company may for the general purposes of their Dundee and Arbroath joint line enter upon take and use the lands hereinafter described and delineated on the deposited plans and described in the deposited books of reference thereto (that is to say):— Power to Company and Caledonian Railway Company to take additional lands.

Certain lands in the city and royal burgh of Dundee in the parish of Dundee in the county of the city of Dundee on the north side of and adjoining the said joint line and between Roodyards Road on the west and the eastern boundary of the said city and burgh on the east:

Provided that notwithstanding anything in this section contained the Company and the Caledonian Railway Company shall not enter upon take or use temporarily or permanently any lands belonging to the trustees of the harbour of Dundee without the previous consent in writing of the said trustees.



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Power to  
Aberlady  
Company  
to take  
additional  
lands.

**16.** Subject to the provisions of this Act the Aberlady Company may for the general purposes of their undertaking enter upon take and use the lands hereinafter described and delineated on the deposited plans and described in the deposited books of reference thereto (that is to say):—

Certain lands in the parish of Aberlady in the county of Haddington situate on both sides of the public road which crosses over the Aberlady Gullane and North Berwick Railway near Luffness Mains and on the south side of the said railway.

Further ex-  
tension of  
time for pur-  
chase of  
lands for  
purposes of  
Aberlady  
Gullane and  
North Ber-  
wick Rail-  
way.

**17.** The powers granted to the Aberlady Company by the Aberlady Gullane and North Berwick Railway Act 1893 as extended by the North British Railway Act 1896 and the North British Railway (General Powers) Act 1898 for the compulsory purchase of lands for the purposes of the railways and works by the first-mentioned Act authorised are hereby further extended and continued and may be exercised by the Aberlady Company for a further period of two years from the twenty-fourth day of August one thousand nine hundred and on the expiration of that period those powers shall cease.

Further ex-  
tending time  
for comple-  
tion of Aber-  
lady Gullane  
and North  
Berwick  
Railway.

**18.** The powers granted by the Aberlady Gullane and North Berwick Railway Act 1893 as extended by the North British Railway Act 1896 and the North British Railway (General Powers) Act 1898 for the completion of the railways and works authorised by the first-mentioned Act are hereby further extended and may be exercised by the Aberlady Company for a further period of two years from the twenty-fourth day of August one thousand nine hundred and four and sections 29 and 30 of the Aberlady Gullane and North Berwick Railway Act 1893 shall be read and construed as if the period further extended and limited by this Act had been the period limited by that Act for the completion of the railways and works by that Act authorised. If the said railways be not completed within the said further extended period then on the expiration of that period the powers granted by the said Act of 1893 in relation thereto as further extended and limited by this Act shall cease except as to so much of the said railways and works as shall then be completed.

Reviving and  
extending time  
for purchase of  
lands for pur-  
poses of works  
authorised by  
North British  
Railway Act  
1895.

**19.** The powers granted to the Company by the North British Railway Act 1895 for the compulsory purchase of lands for the purposes of the Kirkcaldy new railways and works by that Act authorised are hereby revived and extended and may be exercised by the Company for the further period of two years from the sixth day of July one thousand nine hundred and on the expiration of that period those powers shall cease.



**20.** The powers granted by the North British Railway Act 1895 for the completion of the Kirkcaldy new railways and works by that Act authorised are hereby extended and may be exercised by the Company for a further period of three years from the sixth day of July one thousand nine hundred and sections 15 and 16 of the said Act of 1895 shall be read and construed as if the period extended and limited by this Act had been the period limited by that Act for the completion of the said railways and works. If the said railways and works be not completed within the said extended period the powers by the said Act of 1895 granted to the Company in relation thereto as extended and limited by this Act shall cease except as to so much of the said railways and works as shall then be completed.

A.D. 1900.  
Extending  
period for  
completion of  
railways and  
works autho-  
rised by  
North  
British Rail-  
way Act  
1895.

**21.** The powers granted by the East Fife Central Railway Act 1893 to the East Fife Central Railway Company amalgamated with the Company under the provisions of the North British Railway Act 1895 for the compulsory purchase of lands for the purposes of the East Fife Central Railway as extended by the last-mentioned Act and by the North British Railway (General Powers) Act 1898 and the powers for the compulsory purchase of lands for the purposes of the East Fife Deviations authorised by the North British Railway Act 1895 as extended by the said Act of 1898 are hereby respectively further extended and may be exercised by the Company for a further period of two years as regards the East Fife Central Railway from the twenty-fourth day of August and as regards the East Fife Deviations from the sixth day of July one thousand nine hundred and on the expiration of such extended periods those powers shall cease.

Extending  
time for pur-  
chase of  
lands for  
railways  
authorised  
by East Fife  
Central Rail-  
way Act  
1893 and  
North  
British  
Act 1895.

**22.** The powers granted by the East Fife Central Railway Act 1893 for the completion of the East Fife Central Railway as extended by the North British Railway Act 1895 and the North British Railway (General Powers) Act 1898 are hereby further extended and may be exercised by the Company for a further period of two years from the twenty-fourth day of August one thousand nine hundred and four and the powers granted by the North British Railway Act 1895 for the completion of the East Fife Deviations as extended by the North British Railway (General Powers) Act 1898 are hereby further extended and may be exercised by the Company for a further period of two years from the sixth day of July one thousand nine hundred and two.

Extending  
time for com-  
pletion of  
works autho-  
rised by East  
Fife Central  
Railway Act  
1893 and  
North  
British Rail-  
way Act  
1895.

Section 19 of the North British Railway Act 1895 shall be read and construed as if the periods further extended and limited by this Act had been the periods limited by that Act respectively for



A.D. 1900.      the completion of the East Fife Central Railway and the East Fife Deviations.

If the said railways and works be not completed within the said further extended periods then on the expiration of those periods the powers in relation thereto shall cease except as to so much of the said railways and works as shall then be completed.

Extending time for purchase of lands under Newburgh and North Fife Railway Act 1897.

**23.** The powers granted to the Newburgh and North Fife Railway Company by the Newburgh and North Fife Railway Act 1897 for the compulsory purchase of lands for the purposes of the railways and works by that Act authorised are hereby extended and may be exercised by the Newburgh and North Fife Railway Company for the further period of two years from the sixth day of August one thousand nine hundred and on the expiration of that period those powers shall cease.

Extending time for completion of works authorised by Newburgh and North Fife Railway Act 1897.

**24.** The powers granted by the Newburgh and North Fife Railway Act 1897 for the completion of the railways and works by that Act authorised are hereby extended and may be exercised by the Newburgh and North Fife Railway Company for a further period of three years from the sixth day of August one thousand nine hundred and two and sections 28 and 29 of the Newburgh and North Fife Railway Act 1897 shall be read and construed as if the period extended and limited by this Act had been the period limited by that Act for the completion of the railways and works by that Act authorised.

If the said railways and works be not completed within the said extended period then on the expiration of that period the powers by the Newburgh and North Fife Railway Act 1897 granted to the Newburgh and North Fife Railway Company as extended and limited by this Act shall cease except as to so much of the said railways and works as shall then be completed.

Further extension of time for completion of works authorised by Alloa Harbour Act 1889.

**25.** The powers conferred upon the Company by section 41 of the North British Railway (General Powers) Act 1891 as revived and extended by section 14 of the North British Railway (General Powers) Act 1897 are hereby further extended as follows Within three years from the twenty-sixth day of July one thousand nine hundred the Company may make the principal works described in section 4 of the Alloa Harbour Act 1889 and with the consent in writing of the Board of Trade may execute the several works mentioned in section 13 of the said Act.

If the said works be not completed within the said further extended period then on the expiration of that period the powers in relation thereto shall cease except as to so much of the said works as shall then be completed.



26. The quantity of land to be taken by the Company by agreement for the extraordinary purposes mentioned in the Railways Clauses Consolidation (Scotland) Act 1845 shall not exceed ten acres but nothing in that Act or in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so taken.

A.D. 1900.  
Lands for extra-ordinary purposes.

27. The powers of the Company for the compulsory purchase of lands under the powers of this Act shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

28. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any servitude right or privilege (not being a servitude right or privilege of water in which other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Owners may grant servitudes &c.

29. The Company may make the roadway over the bridges by which the following roads will be carried over the railways of such width between the fences thereof as the Company think fit not being less than the widths hereinafter mentioned in connexion therewith respectively (that is to say) :—

Width of certain roadways.

| No. of Railway. | Number on deposited Plans. | Parish.       | Description of Road. | Width of Roadway. |
|-----------------|----------------------------|---------------|----------------------|-------------------|
| 2               | 100                        | Falkirk - -   | Hope Street -        | 35 feet           |
| 2               | 210                        | Falkirk - -   | Public - -           | 30 „              |
| 3A              | 298                        | Falkirk - -   | Public - -           | 25 „              |
| 3A              | 342                        | Falkirk - -   | Public - -           | 35 „              |
| 3A              | 368                        | Falkirk - -   | Public - -           | 30 „              |
| 7               | 4                          | Leith - -     | Public - -           | 35 „              |
| 7               | 23                         | Leith - -     | Public - -           | 20 „              |
| 7               | 2                          | Duddingston - |                      |                   |



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and the Company may make the roadway of the alteration of public road No. 22 in the parish of Berwick-upon-Tweed of such width as the Company think fit not being less than thirty feet.

Height and span of arches of certain bridges.

30. The Company may make the arches of the bridges for carrying the railways over the roads next hereinafter mentioned of any heights and spans not less than the heights and spans hereinafter mentioned in connexion therewith respectively (that is to say) :—

| No. of Railway. | Number on deposited Plans. | Parish.       | Description of Road. | Height. | Span.    |
|-----------------|----------------------------|---------------|----------------------|---------|----------|
| 1               | 24                         | Falkirk       | Public -             | 16 feet | 30 feet. |
| 1               | 32                         | Falkirk       | Public -             | 15 „    | 20 „     |
| 1               | 50                         | Falkirk       | Private -            | 12½ „   | 20 „     |
| 2               | 73                         | Falkirk       | Public -             | 9½ „    | 14 „     |
| 2               | 277                        | Falkirk       | Public -             | 15 „    | 25 „     |
| 3A              | 50                         | Falkirk -     | Private -            | 15 „    | 20 „     |
| 7               | 15                         | Duddingston - | Public -             | 14½ „   | 35 „     |
| 7               | 24                         | Duddingston - | Public -             | 16 „    | 25½ „    |

Gradient of certain road.

31. In altering for the purposes of this Act the road next hereinafter mentioned the Company may make the same of any inclination not steeper than the inclination hereinafter mentioned (that is to say) :—

| No of Railway. | Number on deposited Plans. | Parish.   | Description of Road. | Intended Inclination. |
|----------------|----------------------------|-----------|----------------------|-----------------------|
| 2              | 210                        | Falkirk - | Public -             | 1 in 17               |

Owners may be required to sell parts only of certain properties.

32. And whereas in the construction of the widenings railways and works by this Act authorised or otherwise in exercise by the Company or the Company and the Caledonian Railway Company (as the case may be) of the powers of this Act it may happen that portions only of certain properties shown on the deposited plans will be sufficient for the purposes of the Company or the Company and the Caledonian Railway Company (as the case may be) and



that such portions may be severed from the remainder of the said properties without material detriment thereto. Therefore the owners of and persons interested in the properties described in the Fourth Schedule to this Act and whereof parts only are required for the purposes of the Company or the Company and the Caledonian Railway Company (as the case may be) may (if such portions can in the opinion of the jury arbiters or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of the said properties without material detriment thereto) be required to sell and convey to the Company or the Company and the Caledonian Railway Company (as the case may be) the portions only of the properties so required without the Company or the Company and the Caledonian Railway Company (as the case may be) being obliged or compellable to purchase the whole or any greater portion thereof the Company or the Company and the Caledonian Railway Company (as the case may be) paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other persons interested therein by severance or otherwise.

If for twenty-one days after the service of notice to sell and convey any portion or portions of any such property any owner or other person shall fail to notify to the Company or the Company and the Caledonian Railway Company (as the case may be) that he alleges that such portion or portions cannot be severed from the remainder of the property without causing the material detriment mentioned then the Company or the Company and the Caledonian Railway Company (as the case may be) may proceed to take such portion or portions only but if within such twenty-one days he shall by notice to the Company or the Company and the Caledonian Railway Company (as the case may be) allege that such portion or portions cannot be severed from the remainder without causing such material detriment as aforesaid then the tribunal to whom the question of disputed compensation shall be submitted shall determine the matter of the said allegation in addition to the other questions required to be determined by them. Provided always that if in the opinion of the said tribunal such portion or portions cannot be severed from the remainder of such property without such material detriment the Company or the Company and the Caledonian Railway Company (as the case may be) may withdraw their notices to treat for the portion or portions of the property required by them and thereupon they shall pay to the owner of or other person interested in such property all costs charges and expenses reasonably and properly incurred by such owner or other person in consequence of such notice. Provided also that if in the

A.D. 1900.



A.D. 1900. — opinion of such tribunal such portion or portions can notwithstanding the allegation of such owner or other person be severed from the remainder without such material detriment then such tribunal may in their absolute discretion determine and order that the costs charges and expenses incurred by such owner or other person incident to the arbitration or inquiry shall be borne and paid by such owner or other person. The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Acts contained. The provisions of this section shall be stated in every notice given thereunder by the Company or the Company and the Caledonian Railway Company (as the case may be) to sell and convey any premises.

Extending  
time for sale  
of super-  
fluous lands.

**33.** The Company may notwithstanding anything to the contrary contained in the Lands Clauses Consolidation Act 1845 or in the Lands Clauses Consolidation (Scotland) Act 1845 or in any Act relating to the Company with which those Acts or either of them are or is incorporated retain and hold any lands belonging to them in the parishes mentioned in the Fifth Schedule to this Act which have not yet been applied or are not required for the purposes of the Company but are situate near or adjoining any railway or station of the Company or may in the opinion of the Company be required by them for the purposes of stations sidings or other conveniences for the period of five years from the passing of this Act. But at any time during such period of five years the Company may and at the expiration of such period the Company shall sell and dispose of as superfluous lands or feu all such parts of those lands as shall not then have been applied to or are not then required for the purposes of their undertaking.

For protec-  
tion of the  
corporation  
of Edin-  
burgh.

**34.** For the protection of the corporation of Edinburgh the following provisions shall have effect (that is to say):—

- (1) Before shutting up or otherwise interfering with the two public roadways or accesses leading from Sunnybank Place to Royal Park Terrace and from London Road to Royal Park Place or either of them the Company shall provide make and complete to the satisfaction of the corporation a substituted roadway or roadways between the said Sunnybank Place and Royal Park Terrace and London Road and Royal Park Place of suitable and convenient width levels and height underneath the railway for the use of pedestrians and vehicular traffic and shall fence and pave the same but nothing herein contained shall extend to prevent the Company from widening on the north side of their Edinburgh and Berwick Railway the existing bridges carrying that railway across the said two



public roadways or accesses but such widening shall not exceed what is required for two additional lines of rails. The Company shall put any sewers and drains whether public or private in or near the line of the said roadways into a state of good and efficient repair to the satisfaction of the corporation before covering or building or embanking over the same:

- (2) In the event of the Company carrying out the widening referred to in the immediately preceding subsection they shall not encroach on the said roadways or accesses or either of them or on any part of the same nor interrupt the traffic thereon and they shall line the walls facing the said roadways with white glazed bricks and shall make adequate provision to the reasonable satisfaction of the corporation for carrying off water and preventing the same from falling or dripping on to such roadways and they shall further make provision for lighting such roadways underneath the existing bridge as well as the said widening:
- (3) All sewers and drains public or private within the areas proposed to be taken and used by the Company under this Act where embanking is to be carried out or where buildings or railway sidings, lyes or sheds or roadways or any other railway works are to be formed or erected over at or near to the same shall be suitably and sufficiently protected and strengthened by the Company at their own expense in such way and manner as may be required by and to the reasonable satisfaction of the corporation. The Company shall provide to the reasonable satisfaction of the corporation sufficient and suitable means of access or accesses to such sewers and drains:
- (4) Before commencing any operations under this Act which shall in any way affect the works or property of the corporation the Company shall give three weeks previous notice of their intention so to do to the corporation and shall submit plans and sections of the proposed operations and the corporation shall within three weeks after receipt of such plans signify approval or disapproval of the same and in the event of the corporation signifying such disapproval the points in difference shall be settled failing agreement by arbitration:
- (5) In carrying out any operations on the bridge which carries the public roadway over the Leith and Portobello Railway at the northern end of Portobello Road at its junction with High Street and Kings Road Portobello the Company shall interfere as little as possible with the cable tramway lines and the electric lighting cables on the said bridge and shall always maintain



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—

and keep open for traffic one of the tramway lines on the bridge and shall not in any way interrupt any electric current and the Company shall pay the corporation or their lessees any extra expense or loss occasioned to them in providing for the uninterrupted working of the tramway traffic and in working the same during such operations and until the restoration of the two cable lines on the reconstructed bridge and shall relieve the corporation of all claims in relation thereto Provided further that on the completion of such operations the Company shall restore any cable tramway lines and works and any electric lines and works so interfered with to the reasonable satisfaction of the corporation :

(6) The provisions of this section shall be in addition to and shall not prejudice the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 :

(7) If any difference shall arise between the Company and the corporation or their respective engineers on any matter arising under this section such difference shall failing agreement be referred to and determined by an engineer to be appointed by the sheriff of the Lothians and Peebles on the application of either party and the cost of any such reference shall be borne and paid as the referee shall direct and all such works as may be the subject of difference shall be done and carried out by the Company according to such agreement or the decision of such arbiter.

For protec-  
tion of the  
corporation  
of Glasgow.

**35.** For the protection of the corporation of the city of Glasgow as such and as acting in execution of the several public and local and personal Acts by which any powers jurisdiction or authorities are conferred on them (in this section called "the corporation") the following provisions shall (unless otherwise agreed upon) have effect and be binding on the Company (that is to say) :—

(1) At least twenty-one days before the Company commence any works the execution of which would in any way interfere with or affect any of the roads streets lanes or footpaths or public places in the city and royal burgh of Glasgow or which would interfere with or affect the sewers drains gas or water pipes tramways electric wires or other works belonging to the corporation the Company shall give to the corporation notice thereof in writing accompanied by plans sections working drawings and specifications showing the manner in which the said works are to be executed and also showing the means to be employed by the Company not only for protecting the said roads streets lanes footpaths or public places sewers drains gas or water



pipes tramways electric wires or other works during the operations of the Company but for making good any injury or damage to or interference with the same respectively which plans sections working drawings and specifications shall be subject to the approval of the corporation previously to the works of the Company affecting the said roads streets lanes footpaths or public places sewers drains gas or water pipes tramways electric wires or other works being commenced and such works shall be carried out in conformity with the plans as approved of or settled. Provided always that if the corporation do not within fourteen days after service of such notice on them intimate to the Company their approval or disapproval of the said plans sections working drawings and specifications the Company may thereupon proceed to execute the said works but the corporation shall not be held to have approved or acquiesced in such plans working drawings and specifications :

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(2) The Company shall not in the exercise by them of the powers of this Act—

(i) Stop up permanently any road street lane or footpath in the city with the exception of Fountain Street Burnside Street and Claybrae ;

(ii) Shut up Bluevale Street Whitevale Street Sword Street Bellgrove Street Moore Street Hill Street Sydney Street Barrack Street or Hunter Street to a greater extent at any one time than one half of the width of each street and shall at all times leave the other half clear and open for the passage of traffic of every kind. And the Company shall not except with the consent of the corporation be entitled to shut up occupy or interfere with any portion of those streets for a longer period than six months and they shall be liable to a penalty payable to the corporation not exceeding five pounds for every day after the expiry of said period of six months that any such portion of those thoroughfares shall (except with the consent as aforesaid) be shut up or occupied or interfered with :

(3) In every case in which the Company interfere with or shut up temporarily any road street lane or footpath the Company shall to the satisfaction of the corporation—

(i) Restore the road street lane or footpath so interfered with by the said works ;

(ii) Cause the road street lane or footpath to be maintained till properly consolidated ;



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- (iii) Make good the paving and metalling of the road street lane or footpath and where necessary cause the road street lane or footpath to be repaved or remetalled over its entire width ;
- (iv) Provide and maintain all requisite temporary communications and accesses for foot passengers to and from the houses and other buildings in the roads streets or lanes so interfered with :
- (4) Where any part of the property to be acquired by the Company under the powers of this Act adjoins or fronts any street the Company shall after the acquisition of such property be under all the statutory obligations of an owner fronting or abutting on any such street so far as not inconsistent with the powers conferred upon the Company for the use of such property for railway purposes :
- (5) Subject to the provisions of this section the Company shall not in the construction of their railways interfere with or obstruct the working of the existing or authorised tramways of the corporation in any way and the Company shall indemnify the corporation for any loss detention or injury sustained by them by reason of interruption to or interference with the tramways or the traffic thereon in consequence of the construction of their railways and works or in consequence of anything arising from their subsequent maintenance or repair or in consequence of the operations of the Company relating thereto :
- (6) The Company shall not in the construction of Railway No. 9 between Bellgrove Street and Moore Street open or interfere with the surface of the Glasgow Cattle Market slaughter-houses and premises adjoining thereto belonging to the corporation except in lengths not exceeding thirty feet at any one place and not more than three places at any one time The works shall be carried on so as to cause the minimum of inconvenience to the market and slaughter-houses and the Company shall indemnify the corporation for all loss injury and interruption of business occasioned by the operations of the Company but this provision shall not entitle the corporation to any payment from the Company in respect of temporary loss of space in said cattle market and other property while the surface thereof is open or interfered with under this section The Company shall not permanently occupy any portion of the surface of such market slaughter-houses and other premises and shall as speedily as possible restore the surface and all erections thereon to the satisfaction of the corporation :



- (7) The Company shall so construct Railway No. 9 between Bellgrove Street and Moore Street that the roof of the tunnel shall be sufficiently strong to sustain the weight of buildings of four storeys : A.D. 1900.
- (8) Whenever the Company apply the property belonging to them situated between Hunter Street Barrack Street and Gallowgate to railway purposes they shall remove the existing wall fronting Gallowgate and shall erect buildings or a suitable enclosure wall in accordance with designs to be agreed on between the corporation and the Company :
- (9) If and when the buildings on the property fronting George Square and North Frederick Street are taken down the Company shall re-erect buildings of a height not less than the present buildings and of an architectural character to be approved of by the corporation and the said buildings shall not be nearer the street than the present building line :
- (10) Should it be necessary for the Company to interfere with or alter any road or street in which any water gas and electricity mains pipes feeders wires and tubes of the corporation are or may be laid or to interfere with any of the said mains pipes feeders wires and tubes the Company shall wherever it is reasonably practicable to do so and if required by the corporation leave not less than three feet of covering from the surface of the road or street over every main pipe feeder tube or wire so altered or interfered with And in any case where such three feet of covering or more cannot be given the Company shall in every such case be bound to provide at their own expense special works for continuing the existing mains pipes feeders wires or tubes across the railways with special protection from injury for such mains pipes feeders wires or tubes all to the reasonable satisfaction of the water gas and electrical engineers of the corporation The Company shall also provide at their own expense and to the reasonable satisfaction as aforesaid all stop-cocks scour pipes air valves and other apparatus in connexion with said mains pipes feeders wires or tubes that may be rendered necessary through their operations:
- (11) In the event of the railways or widenings of railways authorised by this Act necessitating alterations on or additions to any bridges carrying or intended to carry any road or street over the said railways or widenings of railways and in or over which bridges the water gas or electricity mains pipes feeders wires and tubes of the corporation are already laid or in or over which bridges the corporation may deem it necessary



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to lay any new or additional water gas and electricity mains pipes feeders wires and tubes the Company shall be bound to execute such alterations on or additions to said bridges in such manner as to admit of the existing water gas and electricity mains pipes feeders wires and tubes being maintained in or over such bridges and of any new or additional water gas and electricity mains pipes feeders wires and tubes which the corporation may deem it necessary to provide as aforesaid being laid and maintained in or over the same In particular the provisions of this subsection shall apply to the continuation by means of two or three pipes of the thirty-six inch water main from Craigmaddie Reservoir which the corporation intend to lay in or over the bridge carrying the Company's existing railway over Barrack Street immediately to the south of Fountain Street:

- (12) If at any time any accident shall occur to any water gas or electricity main pipe feeder wire or tube or any apparatus connected therewith at or near any point where such main pipe feeder wire or tube or any apparatus connected therewith is crossed or otherwise affected by the Company and in respect of which accident it may be necessary to interfere with any of the works of the Company it shall be lawful for the corporation immediately to repair said main pipe feeder wire or tube or any apparatus connected therewith in such manner as to occasion as little delay and inconvenience as may be to the traffic of the railways of the Company Provided always that the corporation shall either before or as soon as practicable after the commencement of such repair give notice thereof to the Company Provided also that it shall be lawful for the Company on the occurrence of any such accident to repair any damage that may be caused to the railway so far as the same can be repaired without interrupting the repair of any such main pipe feeder wire or tube or any apparatus connected therewith:
- (13) Where any of the Company's works involve an alteration in respect of any of the said mains pipes feeders wires or tubes or any apparatus connected therewith the corporation shall have the option themselves of executing the works necessary for such alterations at the expense of the Company and the Company shall be liable for any injury or loss sustained by the corporation by reason of such alterations except where the same may be caused by the fault or neglect of the corporation:
- (14) In addition to the plans sections working drawings and specifications provided for in subsection (1) plans of all



A.D. 1900.  
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alterations on or additions to bridges as aforesaid and of all special works for the protection of said mains pipes feeders wires and tubes to be provided or constructed by the Company as aforesaid shall be submitted to the water gas and electrical engineers of the corporation for their approval at least twenty-one days before such works alterations or additions are commenced and the said engineers shall be bound within the said period of twenty-one days to intimate to the Company or their engineer their approval or disapproval thereof:

(15) In the event of the Company requiring to take any part of the land and buildings thereon in Sydney Street belonging to the corporation water department for the purpose of executing any of the works authorised by this Act they shall be bound unless otherwise agreed between the corporation and the Company to purchase the whole of the said land and buildings Provided that the Company shall give to the corporation at least twelve months' previous notice in writing of their intention so to acquire said land and buildings:

(16) Nothing in this Act contained shall prevent the corporation at any future time from carrying out any public improvement or any alterations developments or extensions of the existing or contemplated works in connexion with any department administered by them either above or below the level of the Company's works and wherever the same are or but for the construction of the railways might have been carried across the Company's works the Company shall pay to the corporation any additional expense the corporation may reasonably incur or be put to in the carrying out of the same by reason of the making or maintaining of the Company's works or by any of the operations of the Company nor shall anything in this Act entitle the Company to any compensation for any damage occasioned by such operations of the corporation unless such damage shall have been occasioned by the default or neglect of the corporation:

(17) The special provisions herein contained for the protection of the corporation shall not be deemed to supersede or dispense with the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 sections 18 to 23 both inclusive But those provisions respectively (except in so far as they may be inconsistent with any of the special provisions herein contained) shall be and remain in full force and effect Provided also that the provisions of sections 18 to 23 both inclusive of the Railways Clauses Consolidation (Scotland) Act 1845 shall apply



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to all mains pipes feeders wires and tubes and any apparatus connected therewith used for the supply of electricity in the same manner and to the same extent as they apply to all mains pipes and apparatus used for the supply of water and gas :

- (18) If any difference shall arise between the corporation and the Company upon or with reference to any plans sections elevations working drawings or specifications or other particulars which under the provisions hereinbefore contained are to be delivered by the Company to the corporation or as to the mode of carrying out any of the works hereinbefore provided for or as to any other matter or thing arising out of the said plans sections elevations working drawings specifications or particulars or any of the provisions of this section every such difference shall on the application of the Company or of the corporation be referred to the determination of an arbiter to be mutually agreed upon by the corporation and the Company and failing such agreement to be appointed on the requisition of either of them by the Board of Trade and such arbiter shall have power to determine the matter in difference The costs of and incidental to the reference shall be paid by the Company If any question of law should arise in the course of such arbitration the arbiter shall have power at the request of either party to state a case for the opinion of the court of session and the court shall determine such question.

For protection of the burgh of Falkirk.

**36.** For the protection of the provost magistrates and town council of the burgh of Falkirk as such and as commissioners of the said burgh (in this section called "the corporation") the following provisions shall have effect (that is to say) :—

- (1) The Company shall within three years from the passing of this Act remove the existing footbridge and make construct complete and for ever maintain a new bridge carrying the road over the existing railway and Railway No. 2 on the line and in continuation of Vicar Street and Grahams Road and which new bridge shall not be less than fifty feet wide throughout between the parapets and the approaches shall not be steeper than a gradient of one in twenty on the north side thereof and one in thirty on the south side and the design and method of construction of the said bridge shall be subject to the reasonable approval of the corporation Provided that when the said bridge is completed and open for public traffic it shall be in substitution for the present stone bridge carrying the present roadway between Vicar Street and Grahams Road which present stone bridge shall thereafter be dispensed with



Provided further that the Company shall not until the said new bridge is completed and open for traffic interfere with the said existing stone bridge or interrupt the use of the same for traffic : A.D. 1900.

- (2) If and when the Company shall lengthen the bridge known as Bleachfield Bridge carrying the railway of the Company over the roadway they shall put in and maintain glass to the reasonable satisfaction of the corporation so as to provide for the lighting of the roadway under the railway :
- (3) The Company shall in constructing Railway No. 2 make Hope Street Bridge throughout the full width of the street on the south side of said bridge :
- (4) The Company notwithstanding anything in this Act or on the deposited plans shall not take or acquire any portion of Meeks Road in the said burgh :
- (5) If in the construction of Railway No. 2 Kerse Lane Bridge is interfered with the Company shall widen the said bridge to thirty-six feet between the abutments :
- (6) The Company shall make the bridges carrying Railway No. 3A under Main Street Bainsford and Hendry Street Bainsford the full width of these streets respectively :
- (7) The Company may lay an additional or second line of rails across Wallace Street within the said burgh and shall as soon as they commence to lay the same erect and maintain a new and sufficient footbridge over the lines of railway at the point where the said lines cross the said street and to the south of the building line in Wallace Street and in all respects to the reasonable satisfaction of the corporation :
- (8) As soon as the Company shall have laid the additional or second line of railway across Wallace Street the present gates and fencing connected therewith at the existing crossing shall be entirely removed and new gates interlocked with the signal arrangements at the signal box shall be erected so that when the gates are closed against the railway they shall not at any point project beyond the building lines on the north and south sides of Wallace Street respectively and no engine or engines or waggon or waggons shall be allowed to stand on the level crossing between the building lines of Wallace Street and the crossing shall be so worked that vehicular traffic shall not be interrupted for a longer period than eight minutes at any one time :
- (9) In the event of the Company diverting the present road known as Mungalhead Road they shall make the width of the



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road so diverted and the bridge carrying the roadway over the proposed Railway No. 3A of an uniform width of not less than thirty-six feet between the parapets :

(10) Railway No. 5A shall not cross Mungalend Road or any part of the same :

(11) The Company shall submit plans to the corporation of the proposed bridges and other works affecting the corporation and of any alterations of sewers and gas mains and pipes at least twenty-one days before commencing any such works or alterations and if the corporation shall not within fourteen days after the receipt of the said plans state in writing their disapproval of the same the Company shall be entitled to proceed with the works in accordance with the plans so submitted In the event of the corporation intimating disapproval of the plans or of any dispute arising between the parties as to the meaning of this section or as to any matter arising out of the provisions of this section or in the carrying out of any such works or alterations and the parties failing to agree with respect thereto the points in difference shall be referred to an arbiter to be mutually agreed upon or failing agreement to be appointed by the sheriff of the county of Stirling on the application of either party and the Company shall carry out the work in accordance with such agreement or as settled by such arbiter.

For protec-  
tion of the  
Falkirk &c.  
water  
trustees.

**37.** For the protection of the Falkirk and Larbert Water Trustees incorporated by the Falkirk and District Water Act 1888 (in this section called "the water trustees") the following provisions shall have effect (that is to say) :—

The Company shall in carrying out the powers of this Act and before altering or interfering with any of the water mains or pipes of the water trustees submit plans to the water trustees showing any proposed alteration or diversion of such water mains or pipes at least twenty-one days before commencing any such works or operations and if the water trustees shall not within fourteen days of the receipt of such plans state in writing their disapproval of the same the Company shall be entitled to proceed with the works in accordance with the plans so submitted In the event of the water trustees intimating disapproval of such plans or of any dispute arising between them and the Company as to the carrying out of any such works or operations and if they fail to agree with respect thereto the points in difference shall be referred to an arbiter to be mutually agreed upon or failing agreement to be appointed by the sheriff of the county of



Stirling on the application of either the water trustees or the Company and the Company shall thereupon carry out the work in accordance with such agreement or as may be settled by such arbiter. A.D. 1900.

**38.** Whereas the mains or pipes of the Edinburgh and District Water Trustees (hereinafter called "the water trustees") incorporated under the Edinburgh and District Waterworks Act 1869 will or may at certain points be crossed or otherwise affected by the construction of Railways Nos. 7 and 8 authorised by this Act Therefore for the protection of the water trustees the following provisions shall be binding on the Company and have full effect (viz.) :—

For protection of the mains and pipes of the Edinburgh and district water trustees.

(1) In case it should be necessary for the Company in constructing the said railways or either of them to interfere with or alter any water mains or pipes of the water trustees laid in any road or street (exclusive of bridges) the Company shall be bound whenever it is reasonably practicable to do so to leave not less than three feet of covering from the surface of the road or street over every main or pipe so altered or interfered with And in any case where such three feet of covering or more cannot in the opinion of the engineer of the Company and of the engineer of the water trustees (as the case may be) and failing agreement in the opinion of the arbitrator hereinafter referred to be given (keeping in view the practicability reasonableness and relative cost) the Company shall in every such case be bound to provide at their own expense special works for protecting such mains or pipes from injury to the reasonable satisfaction of the engineer of the water trustees as the case may be The Company shall also be bound to provide at their own expense and to the reasonable satisfaction as aforesaid all stop-cocks scour pipes and air valves in connexion with the said mains or pipes that may be rendered necessary through their operations :

(2) In the event of the water trustees desiring at any time to carry any water mains or pipes in extension of their existing pipes along the line of the road which at present crosses the railway of the Company from South Leith to Portobello on the level instead of along the road as proposed to be diverted the water trustees shall have power to do so and the Company shall give them all facilities and wayleave through the property of the Company necessary for such crossing The whole works required for the protection of the existing railway and Railway



A.D. 1900.

No. 7 to be carried out by the water trustees at the sight and to the reasonable satisfaction of the engineer of the Company for the time being :

- (3) In the event of the construction of the said Railway No. 7 rendering necessary the construction of a bridge or bridges or the widening of any bridge or bridges for the purpose of carrying over the railway any road or street in which the water trustees have power either under the special Acts relating to their water undertaking or under any Act incorporated therewith to lay and maintain water mains or pipes or in the event of the Company at any time constructing any bridge or bridges or widening any bridge or bridges for the purpose of carrying any such road or street as aforesaid over the railway then and in either of these events such bridge or bridges and bridge widening shall be constructed of such materials and in such manner as to admit of the water trustees laying extending and maintaining and when so laid or extended of altering or enlarging such mains or pipes as the engineer of the water trustees may before the construction of such bridge or bridges or bridge widening is commenced reasonably determine as necessary for adequately supplying with water the inhabitants of the district within which such bridge or bridges or bridge widening is or are to be constructed Provided that none of such mains or pipes shall be of greater diameter than eighteen inches :
- (4) If at any time any accident shall occur to the said mains or pipes at or near any of the points where the same are crossed or otherwise affected by the said railways of the Company and in consequence of which accident it may be necessary to interfere with any of the works of the Company it shall be lawful for the water trustees immediately to repair the said mains or pipes in such manner as to occasion as little delay and inconvenience as may be to the traffic of the railway of the Company Provided that the water trustees shall either before or as soon as practicable after the commencement of such repair give notice thereof to the Company :
- (5) The plans of all works required in constructing the said railways so far as interfering with or intended to protect the said mains or pipes and also the plans of all special works (including bridges and bridge widenings) to be provided or constructed by the Company as aforesaid shall be submitted to the engineer of the water trustees for his reasonable approval at least twenty-one days before such works are commenced and



the said engineer shall be bound within the said period of twenty-one days to intimate to the Company or their engineer his approval or disapproval thereof: A.D. 1900.

- (6) Where any such works involve an alteration in respect of any of the said mains or pipes the water trustees shall have the option themselves of executing the works necessary for such alteration at the expense of the Company:
- (7) The special provisions herein contained for the protection of the water trustees shall not be deemed to supersede or dispense with the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 sections 18 to 23 both inclusive But those provisions respectively (except in so far as they may be inconsistent with any of the special provisions herein contained) shall be and remain in full force and effect:
- (8) All disputes and differences between the water trustees and the Company or between their respective engineers with regard to any of the provisions of this section shall be referred to the decision of an arbitrator to be appointed by the Board of Trade on the application of either party and the decision of such arbitrator shall be final.

**39.** Whereas the mains and pipes of the Edinburgh and Leith Corporations Gas Commissioners (hereinafter called "the gas commissioners") incorporated under the Edinburgh and Leith Corporations Gas Act 1888 will or may at certain points be crossed or otherwise affected by the construction of Railway No. 7 authorised by this Act Therefore for the protection of the gas commissioners the following provisions shall be binding on the Company and have full effect (viz.) :—

For protection of the Edinburgh and Leith Corporations Gas Commissioners.

- (1) In case it should be necessary for the Company in constructing the said railway to interfere with or alter any gas mains or pipes of the gas commissioners laid in any road or street (exclusive of bridges) the Company shall be bound whenever it is reasonably practicable to do so to leave not less than three feet of covering from the surface of the road or street over every main or pipe so altered or interfered with And in any case where such three feet of covering or more cannot in the opinion of the engineer of the Company and of the engineer of the gas commissioners (as the case may be) and failing agreement in the opinion of the arbitrator hereinafter referred to be given (keeping in view the practicability reasonableness and relative cost) the Company shall in every such case be bound to provide at their own expense special works for protecting such mains or pipes from injury to the reasonable



A.D. 1900.

satisfaction of the engineer of the gas commissioners as the case may be :

- (2) In the event of the construction of the said Railway No. 7 rendering necessary the construction of a bridge or bridges or the widening of any bridge or bridges for the purpose of carrying over the railway any road or street in which the gas commissioners have power either under the special Acts relating to their gas undertaking or under any Act incorporated therewith to lay and maintain gas mains or pipes or in the event of the Company at any time constructing any bridge or bridges or widening any bridge or bridges for the purpose of carrying any such road or street as aforesaid over the railway then and in either of these events such bridge or bridges and bridge widening shall be constructed of such materials and in such manner as to admit of the gas commissioners laying and maintaining and when so laid of altering or enlarging such mains or pipes as the engineer of the gas commissioners may before the construction of such bridge or bridges or bridge widening is commenced reasonably determine as necessary for adequately supplying with gas the inhabitants of the district within which such bridge or bridges or bridge widening is or are to be constructed Provided that none of such mains or pipes shall be of greater diameter than eighteen inches :
- (3) If at any time any accident shall occur to the said mains or pipes at or near any of the points where the same are crossed or otherwise affected by the said railway of the Company and in consequence of which accident it may be necessary to interfere with any of the works of the Company it shall be lawful for the gas commissioners immediately to repair the said mains or pipes in such manner as to occasion as little delay and inconvenience as may be to the traffic of the railway of the Company Provided that the gas commissioners shall either before or as soon as practicable after the commencement of such repair give notice thereof to the Company :
- (4) The plans of all works required in constructing the said railway so far as interfering with or intended to protect the said mains or pipes and also the plans of all special works (including bridges and bridge widenings) to be provided or constructed by the Company as aforesaid shall be submitted to the engineer of the gas commissioners for his reasonable approval at least twenty-one days before such works are commenced and the said engineer shall be bound within the said period of twenty-one days to intimate his approval or disapproval thereof :



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(5) Where any such works involve an alteration in respect of any of the said mains or pipes the gas commissioners shall have the option themselves of executing the works necessary for such alterations at the expense of the Company :

(6) The special provisions herein contained for the protection of the gas commissioners shall not be deemed to supersede or dispense with the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 sections 18 to 23 both inclusive But those provisions respectively (except in so far as they may be inconsistent with any of the special provisions herein contained) shall be and remain in full force and effect :

(7) All disputes and differences between the gas commissioners and the Company or between their respective engineers with regard to any of the provisions of this section shall be referred to the decision of an arbitrator to be appointed by the Board of Trade on the application of either party and the decision of such arbitrator shall be final.

40.—(1) Notwithstanding anything in this Act contained the Company shall not for the purposes of Railways Nos. 9 and 10 by this Act authorised take compulsorily or enter upon or interfere with any lands or works belonging to the Glasgow and South Western Railway Company (hereinafter called “the South Western Company”) without the consent of the South Western Company.

For protec-  
tion of the  
Glasgow and  
South  
Western  
Railway  
Company.

(2) In constructing Railway No. 10 authorised by this Act and any sidings or works in connexion therewith where the said railway crosses over the South Western Company's Railway No. 4 authorised under the Glasgow and South Western Railway Act 1889 the Company shall leave a clear headway of not less than fourteen feet measured from the upper surface of the rails of said Railway No. 4 and shall further construct said Railway No. 10 and said sidings or works of such strength and durability as not to damage or injure the said Railway No. 4 or the works connected therewith or diminish the clear headway above provided for and in the event of said Railway No. 4 or the said works being injured or damaged or the traffic thereon in any way impeded or obstructed by the operations of the Company in the construction and maintenance of said Railways Nos. 9 and 10 the Company shall make compensation to the South Western Company in respect of the loss sustained by them in consequence of such operations as the same failing agreement shall be determined under the Arbitration (Scotland) Act 1894 and further in constructing the said Railway No. 10 and sidings and works the Company shall not take compulsorily any lands belonging to the South Western Company but shall only be



A.D. 1900. — entitled to acquire a wayleave over the same on terms to be agreed on and failing agreement to be determined under the said Arbitration (Scotland) Act 1894.

(3) If in constructing said Railways Nos. 9 and 10 the Company find it necessary to reconstruct or interfere with the bridges carrying Sydney Street and Barrack Street over the railways or works belonging to the South Western Company or either of said bridges the Company shall be bound so to reconstruct such bridges or bridge as not to interfere with the railways and works of the South Western Company or with the traffic thereon and in the event of said railways or works being injured or damaged in the reconstruction of said bridges or bridge or the traffic on said railways in any way impeded or obstructed by the operations of the Company the Company shall make compensation to the South Western Company in respect of the loss sustained by them in consequence of such operations as the same failing agreement shall be determined under the said Arbitration (Scotland) Act 1894.

(4) If any difference shall arise between the Company and the South Western Company as to the mode of constructing said Railways Nos. 9 and 10 or the said sidings or works or the maintenance thereof such differences shall be determined by an engineer to be appointed failing agreement by the Board of Trade and the cost of any reference shall be borne by the Company.

Running powers of North Eastern and Great Northern Railway Companies to extend to Railways Nos. 1 2 7 and 8.

41.—(A) The running powers conferred on the North Eastern Railway Company and the Great Northern Railway Company under the North British and Edinburgh and Glasgow Railway Companies Amalgamation Act 1865 shall extend and apply to Railways Nos. 1 and 2 by this Act authorised.

(B) The running powers rights and facilities (if any) possessed by the Great Northern Railway Company and the North Eastern Railway Company or either of them over the Company's branch from South Leith to Portobello shall extend and apply to Railway No. 7 and the running powers rights and facilities (if any) possessed by the Great Northern Railway Company and the North Eastern Railway Company or either of them over the Company's railway between Piershill and Easter Road shall extend and apply to Railway No. 8.

Works below high water-mark not to be commenced without consent of Board of Trade.

42. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant-secretaries



of the Board of Trade and then only according to such plans and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

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Saving rights of Crown in foreshore.

**43.** Nothing contained in this Act shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any right in respect thereof belonging to the Queen's most Excellent Majesty in right of Her Crown and under the management of the Board of Trade without the previous consent in writing of the Board of Trade on behalf of Her Majesty (which consent the Board of Trade may give) neither shall anything in this Act contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the Queen's Majesty.

Restrictions on displacing persons of labouring class.

**44.—(1)** The Company shall not under the powers of this Act or under the powers of any former Act extended by this Act purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December next before the passing of this Act or of the respective former Act by which such purchase or acquisition was originally authorised (as the case may be) were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or have been or shall be subsequently so occupied unless and until—

(A) They shall have obtained the approval of the Secretary for Scotland to a scheme for providing new dwellings for such number of persons as were residing in such houses on the respective fifteenth day of December aforesaid or for such number of persons as the Secretary for Scotland shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses



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or to the place of employment of such persons and to all the circumstances of the case; and

(B) They shall have given security to the satisfaction of the Secretary for Scotland for the carrying out of the scheme.

(2) The approval of the Secretary for Scotland to any scheme under this section may be given either absolutely or conditionally and after the Secretary for Scotland has approved of any such scheme he may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced:

Provided that the Secretary for Scotland may dispense with the last-mentioned requirement subject to such conditions (if any) as he may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the Secretary for Scotland may have approved of any such scheme or of any modifications of any such scheme or subject to which he may have dispensed with the above-mentioned requirement shall be enforceable by an order of the court of session to be obtained by the Secretary for Scotland.

(5) If the Company acquire or appropriate any house for the purposes of this Act in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the court of session and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Company may appropriate any lands for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purpose of any such purchase section 145 of the Public Health (Scotland) Act 1897 shall be incorporated with this Act and shall apply to the purchase of lands by the Company for the purposes of any scheme under this section in the same manner in all respects as if the Company were a local authority within the meaning of that Act and the scheme were one of the purposes of that Act,



(7) The Company may on any lands belonging to them or purchased or acquired under this section or under any Provisional Order issued in pursuance of this section erect such dwellings for persons of the labouring class as may be necessary for the purpose of any scheme under this section and may sell demise let or otherwise dispose of such dwellings and any lands purchased or acquired as aforesaid and may apply for the purposes of this section to which capital is properly applicable or any of such purposes any moneys which they may be authorised to raise or apply for the general purposes of their undertaking :

Provided that all lands on which any buildings have been erected or provided by the Company in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of such dwellings and every conveyance demise or lease of such lands and buildings by the Company shall contain proper covenants for securing that the buildings on such lands shall during such period of twenty-five years be used exclusively for the purpose of such dwellings and shall be endorsed with notice of this enactment :

Provided also that the Secretary for Scotland may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as he may see fit.

(8) The Secretary for Scotland may direct any inquiries to be held which he may deem necessary in relation to any scheme under this section and for giving effect to any of the provisions of this section and he and any person appointed by him to hold inquiry shall have and may exercise for any purpose in connexion with any scheme under this section all or any of the powers vested in them respectively under the Public Health (Scotland) Act 1897 in the same manner in every respect as if the preparation and carrying into effect of such scheme were one of the general purposes of that Act.

(9) The Company shall pay to the Secretary for Scotland a sum to be fixed by him in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by him in relation to any inquiries under this section including the expenses of any witnesses summoned by the person appointed to hold any such inquiry and a sum to be fixed by the Secretary for Scotland not exceeding three guineas a day for the services of the person so appointed.

(10) Any houses purchased or acquired by the Company for or in connexion with any of the purposes of this Act whether purchased or acquired in exercise of the powers conferred by this



A.D. 1900. — Act or otherwise and whether before or after the passing of this Act which may have been occupied by persons of the labouring class within five years before the passing of this Act and for which houses no substitutes have been or are directed to be provided by any scheme approved by the Secretary for Scotland under any previous Act relating to the Company shall for the purposes of this section be deemed to have been acquired under the powers of this Act and to have been occupied on the fifteenth day of December last by the same number of persons belonging to the labouring class as were occupying the said houses at the date of their acquisition. Provided that if the Secretary for Scotland is unable to ascertain the number of such persons who were then occupying the said houses the said houses shall be deemed to have been occupied by such number of such persons as in the opinion of the Secretary for Scotland they might have been sufficient to accommodate.

(11) For the purposes of this section the expression "labouring class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them. The expression "house" means any house or part of a house separately occupied by any person or persons.

Amalgama-  
tion of the  
three com-  
panies with  
the Com-  
pany.

45. As on and from the first day of August one thousand nine hundred the Aberlady Gullane and North Berwick Railway Company the Newport Railway Company and the Eyemouth Railway Company (hereinafter called "the three companies") respectively are hereby dissolved except for the purpose of winding up their affairs and the undertakings of the three companies are hereby respectively as from such date amalgamated with the undertaking of the Company.

Dissolved com-  
panies to pay  
debts and  
liabilities on  
revenue account  
up to date of  
amalgamation.

46. The three companies respectively shall up to the date of amalgamation bear pay and satisfy all their engagements and liabilities fairly and properly chargeable against revenue.

Holders of  
debenture  
stock of dis-  
solved com-  
panies to be  
holders of

47. On and after the date of amalgamation every holder of debenture stock of the three companies respectively shall upon the delivery of the certificate of the same to the Company be entitled to receive and shall receive in exchange for the said stock such an amount of North British Railway debenture stock 1893 as



will produce the same amount of interest as the stock in respect of which the same shall be exchanged and the certificates for such stocks of the three companies respectively shall be cancelled any difference in the periods to which the interest on such stock is calculated being adjusted on such exchange.

A.D. 1900.  
North  
British  
Railway  
debenture  
stock 1893.

48. On and after the date of amalgamation the holders of preference and ordinary stocks of the three companies respectively shall upon the delivery of the certificates for the same to the Company be entitled to receive and shall receive such an amount of the three per centum consolidated lien stock of the Company as will produce the same amount of interest or dividend as the stocks in respect of which the same shall be exchanged and the certificates for such stocks of the three companies respectively shall be cancelled any difference in the periods to which the interest or dividend on such stocks is calculated being adjusted on such exchange.

Holders of  
preference  
and ordinary  
stocks in  
dissolved  
companies to  
be holders of  
consolidated  
lien stock of  
the Com-  
pany.

49. As and from the date of amalgamation there shall be created by virtue of this Act and without any further or other authority such an amount of North British Railway debenture stock 1893 and such an amount of the three per centum consolidated lien stock of the Company as may be necessary to carry into effect the provisions of this Act relative to the said amalgamation and to enable the Company to exercise any unexercised capital and borrowing powers of the three companies respectively Any such debenture stock shall rank *pari passu* with any debenture stock created under the provisions of section 63 of the North British Railway Act 1895 and the provisions of that section shall subject to the provisions of this Act apply thereto Any such lien stock shall rank *pari passu* with and have the same lien as the three per centum consolidated lien stock of the Company.

Capital of  
Company to  
be increased  
to give effect  
to amalga-  
mation.

50. Notwithstanding anything in this Act contained no holder of debenture stock or of ordinary or preference stocks of the three companies respectively shall become entitled under this Act to any fractional part of a pound of debenture stock or lien stock in the capital of the Company but in every case in which any such holder would but for this enactment have become entitled to a fractional part of a pound of any such stock the Company may at their option pay to such holder such a sum in cash as shall be equal to the market value of such fractional part or receive from such holder such an amount in cash as will make up the amount of stock to be issued to him to an integral number of pounds.

As to frac-  
tional parts  
of a pound  
of stock.

51. If the certificate for any stock in the three companies be lost or destroyed then upon proof thereof and upon an indemnity

Provisions  
as to lost  
certificates.



A.D. 1900. — being given against any claim in respect of such lost or destroyed certificate to the satisfaction of the directors of the Company they shall deliver to the person entitled thereto the amount of cash or a certificate for the stock (as the case may be) to which he would be entitled under this Act as if such first-mentioned certificate had not been lost or destroyed but had been delivered to the Company in terms of this Act.

Substituted stock to be held on same trusts as stock or shares for which it is substituted.

**52.** All debenture stock and lien stock of the Company issued to the holders of debenture stock and ordinary or preference shares in the three companies under the powers of this Act shall be held subject to the same trusts and obligations as those upon or to which the stock or shares for which such stock of the Company is substituted were immediately before the date of amalgamation held or subject and so as to give effect to and not revoke any deed or other instrument or any testamentary or other disposition of or affecting any such stock or shares in the capital of such Company and every such deed or other instrument or testamentary disposition affecting such stocks or shares shall take effect with reference to the whole or a proportionate part (as the case may be) of the stock so substituted therefor.

As to rates on Aberlady undertaking.

**53.** After the date of amalgamation the undertaking of the Aberlady Company shall for the purpose of rates and charges for merchandise traffic be deemed to have formed a part of the undertaking of the Company at the date of the passing of the Railway Rates and Charges No. 25 (North British Railway &c.) Order Confirmation Act 1892.

Vesting Bo'ness Harbour in Company.

**54.** The agreement set forth in the First Schedule to this Act between the Bo'ness Commissioners of the first part the Burgh Commissioners of the second part and the Company of the third part is hereby confirmed and made binding on the parties thereto and on the passing of this Act the Bo'ness Harbour undertaking shall be and the same is hereby transferred to and vested in the Company for all the estate rights and interest of the Bo'ness Commissioners and the Burgh Commissioners therein.

Confirming agreement between Burgh Commissioners Bo'ness Commissioners Caledonian Railway Company and Company.

**55.** The agreement set forth in the Second Schedule to this Act between the Burgh Commissioners of the first part the Bo'ness Commissioners of the second part the Company of the third part and the Caledonian Railway Company of the fourth part is hereby confirmed and made binding on the parties thereto.

Transfer of powers &c.

**56.** From and after the passing of this Act all the rights powers and privileges including the powers of levying collecting and recovering tolls rates duties and charges for and in respect of



the Bo'ness Harbour undertaking shall so far as they remain applicable be by virtue of this Act transferred to vested in and may be exercised by the Company Provided that none of the provisions of the Borrowstounness Town and Harbour Act 1875 the Borrowstounness Town and Harbour (Amendment) Act 1878 and the Borrowstounness Harbour Act 1883 so far as the same or any of them relate to the constitution election meetings offices officers books accounts balance sheets audit auditors sinking funds application of revenues borrowing powers application of borrowed money and annual returns of the Bo'ness Commissioners shall apply to the Company. A.D. 1900.

57. All mortgages of the Bo'ness Commissioners existing at the passing of this Act shall during the continuance of such mortgages be unaffected by the passing of this Act. As to mortgages of Bo'ness Commissioners.

58. No action suit or other proceeding civil or criminal to which at the date of transfer the Bo'ness Commissioners were parties shall abate determine or be prejudicially affected by reason of the transfer of the Bo'ness Harbour undertaking to the Company but may be continued by or against the Company as the case may be as fully and effectually as the same might have been continued by or against the Bo'ness Commissioners. Actions not to abate.

59. All contracts deeds instruments conveyances dispositions assignations grants leases purchases or sales made or entered into by the Bo'ness Commissioners before the transfer shall be effectual to all intents in favour of or against the Company after such date. Contracts &c. preserved.

60. All persons who immediately before the transfer owed any moneys to the Bo'ness Commissioners or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the transfer were due or recoverable from the Bo'ness Commissioners or for the payment of which the Bo'ness Commissioners were or but for this Act would be liable shall be paid with all interest (if any) due or accruing for the same by or be recoverable from the Company. As to payment of debts owing before transfer.

61. All documents books and writings which would have been receivable in evidence in respect of any matter relating to the Bo'ness Harbour undertaking for or against the Bo'ness Commissioners shall after the transfer be admitted as evidence in respect of the same or the like matter for or against the Company. Books &c. to be evidence.

62. All the byelaws rules and regulations of the Bo'ness Commissioners relating to the management use or control of the Bo'ness Harbour undertaking in force at the passing of this Act shall Byelaws to remain in force.



A.D. 1900. — continue to be in force and applicable to and in respect of the Bo'ness Harbour undertaking and shall and may be enforced by and be available to the Company in their own name as well for the recovery of penalties as for all other purposes until the same are altered or repealed or other byelaws rules and regulations duly made in their stead by the Company.

Dissolution of Bo'ness Commissioners.

63. On the completion of the transfer the Bo'ness Commissioners shall ipso facto be dissolved.

Company to take over mortgage and other debts of Bo'ness Commissioners.

64. On and after the passing of this Act the whole mortgage debt and all other debts and liabilities contracts and engagements of the Bo'ness Commissioners shall be taken over and assumed by the Company and the Bo'ness Commissioners shall be and they are hereby wholly freed and relieved therefrom.

Bo'ness Commissioners to pay debts and liabilities to date of transfer.

65. The Bo'ness Commissioners shall up to the date of transfer bear pay and satisfy all their engagements and liabilities fairly and properly charged against revenue.

Reservation of rights of Caledonian Railway Company.

66. All the rights powers and obligations of the Caledonian Railway Company under the Borrowstounness Town Improvement and Harbour Act 1897 are hereby reserved subject to the terms and conditions therein provided and to the provisions of this Act and scheduled agreements.

Capital of Company to be increased for purposes of transfer.

67. As and from the date of transfer there shall be created by virtue of this Act and without any further or other authority such an amount of North British Railway debenture stock 1893 not exceeding five hundred and fifty thousand pounds as may be necessary to meet the obligations of the Bo'ness Commissioners Any such debenture stock shall rank pari passu with any debenture stock created under the provisions of section 63 of the North British Railway Act 1895 and the provisions of that section shall subject to the provisions of this Act apply thereto In lieu of issuing such debenture stock the Company may borrow on mortgage of their undertaking the whole or any part of said sum of five hundred and fifty thousand pounds.

Power to Burntisland Commissioners to borrow additional money.

68. The Burntisland Commissioners may from time to time in addition to the money already borrowed or authorised to be borrowed by them for the purposes of their harbour undertaking borrow on mortgage or on cash credit or otherwise as may be deemed expedient such money as may be required for carrying into effect the purposes of the Burntisland Harbour Acts not exceeding in the whole the sum of one hundred and sixty thousand pounds on the security of their harbour revenues and the rates authorised by the Burntisland Harbour Acts.



**69.** The provisions contained in sections 66 67 and 68 of the Burntisland Harbour Act 1881 shall extend and apply to the money by this Act authorised to be borrowed as if such money had formed part of the money authorised to be borrowed by the Burntisland Commissioners under the powers contained in the said Act of 1881.

A.D. 1900.

Extending certain provisions of Burntisland Harbour Act 1881 to money borrowed under this Act.

**70.** Nothing in this Act contained shall be held or construed to alter affect or diminish any mortgage or assignment or other security granted for money borrowed under the Burntisland Harbour Acts and which shall be subsisting at the passing of this Act and all such mortgages or assignments or other securities shall remain as valid and sufficient in favour of the holders thereof as if this Act has not been passed.

Saving existing securities.

**71.** The Company may from time to time on an application made to them by the Burntisland Commissioners in writing under the hand of their clerk and delivered to the secretary of the Company lend to the Burntisland Commissioners on mortgage on the security of the rates dues and duties leviable by them and of the other revenues of the Burntisland Commissioners and on the like terms and conditions as the money heretofore borrowed by the town council and the Burntisland Commissioners has been lent by the Company any sums of money in addition to the money already advanced on loan by the Company to the town council and the Burntisland Commissioners under the Burntisland Harbour Acts such sums of money not exceeding in the whole one hundred and sixty thousand pounds as the Burntisland Commissioners may require for carrying into effect the purposes of the Burntisland Harbour Acts and any other general purposes of the harbour.

Power to Company to lend additional money to Burntisland Commissioners.

**72.** The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise by the creation and issue at their option of ordinary shares or stock or new preference shares or stock or new preference shares or stock convertible into ordinary preference stock and ordinary stock or wholly or partially by one or more of those modes respectively any additional capital not exceeding in the whole with respect to any advances made by them to the Burntisland Commissioners under this Act the sum of one hundred and sixty thousand pounds but the Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share shall have been paid in respect thereof.

Company may raise additional capital for purposes of Burntisland Harbour.

**73.** Instead of raising the sum of one hundred and sixty thousand pounds by this Act authorised to be advanced on loan to

Company may apply existing or



A.D. 1900. the Burntisland Commissioners by the creation under this Act of shares or stock the Company may if they think fit apply for the authorised funds for purposes of loan to Burntisland Commissioners. purposes of loan to Burntisland Commissioners. or may raise the said sum or any part thereof by assigning the mortgages received by the Company from the Burntisland Commissioners or by granting mortgages or bonds on or over the harbour and dock revenues payable to the Company under the fifth article of the Agreement referred to in the Burntisland Harbour Act 1881 and the Burntisland Harbour Act 1896 as "the Agreement of 1872" and under those Acts and this Act in like manner as they are by the North British Railway Act 1873 the North British Railway Act 1875 the North British Railway (Additional Works and Powers) Act 1877 the Burntisland Harbour Act 1881 and the Burntisland Harbour Act 1896 collectively authorised to raise the sum of four hundred and sixty thousand pounds and as if the total amount by those Acts authorised to be raised were six hundred and twenty thousand pounds instead of four hundred and sixty thousand pounds.

Repeal of section 35 of Burntisland Harbour Act 1896 and substitution of other powers. **74.** Section 35 of the Burntisland Harbour Act 1896 is hereby repealed and the rates dues and duties to be levied by the Burntisland Commissioners and their other harbour revenues shall until the principal sums lent by the Company to the Burntisland Commissioners together with interest thereon shall have been repaid to the Company be applied as follows:—

- (1) In maintaining working and managing the harbour as defined by the Burntisland Harbour Act 1896 and works connected therewith and in dredging and cleansing the harbour and the accesses and entrances thereto and the other necessary expenses of the Burntisland Commissioners including such expenses of working and maintaining the harbour and incident thereto as may have been incurred but not paid before the passing of this Act:
- (2) In paying the annual feu duty to the town council payable by the Burntisland Commissioners:
- (3) In paying interest on money borrowed by the town council and the Burntisland Commissioners from the Company under the authority of the Burntisland Harbour Acts and on money borrowed by the Burntisland Commissioners under the authority of this Act:
- (4) In paying any sums which may be required to be set aside as a sinking fund for the payment of the money already borrowed or which may be borrowed by the Burntisland Commissioners:



(5) Any surplus which may remain after paying or applying to the purposes aforesaid shall be applied in improving deepening and extending the harbour and works connected therewith or in reducing the rates dues duties and charges leviable in respect thereof. A.D. 1900.

**75.** The Company on the one hand and the Invergarry Company on the other hand may subject to the provisions of Part III. of the Railways Clauses Act 1863 as amended or varied by the Railway and Canal Traffic Acts 1873 and 1888 enter into agreements with respect to the following purposes or any of them (that is to say):—  
The maintenance and management of the railways of the Invergarry Company : Working agreements with Invergarry and Fort Augustus Railway Company.

The use or working of the railways of the Invergarry Company and the conveyance of traffic thereon :

The supply and maintenance under and during the continuance of any such agreement as aforesaid for the working of the railway of the Invergarry Company of engines stock and plant necessary for the purposes of such agreement and the employment of officers and servants :

The fixing subject to the authorised maximum rates and the collecting and apportionment of the tolls rates charges receipts and revenues levied taken or arising in respect of traffic.

**76.** During the continuance of any agreement to be entered into under the provisions of this Act for the working or use of the railway of the Invergarry Company by the Company the railways of the two companies shall for the purpose of short distance rates and charges be considered as one railway and in estimating the amount of rates and charges in respect of passengers conveyed partly on the railway of the Company and partly on the railway of the Invergarry Company rates and charges may be charged as for three miles and for every mile or fraction of a mile beyond three miles as for one mile only and in estimating the amount of rates and charges in respect of merchandise traffic conveyed partly on the railway of the Company and partly on the railway of the Invergarry Company the Invergarry Company shall be deemed to be a company connected with the Company and specified in the appendix to the schedule to the Railway Rates and Charges No. 25 (North British Railway &c.) Order confirmed by the Railway Rates and Charges No. 25 (North British Railway &c.) Order Confirmation Act 1892. Short distance charge in case of working agreement where rates and charges fixed with reference to existing Rates and Charges Order of another company.

**77.** Nothing in this Act or in any agreement made under the authority of this Act shall affect the rights of Her Majesty's Saving for Postmaster-General.



A.D. 1900. — Postmaster-General under the Telegraph Act 1878 to place and maintain telegraphic lines in under upon along over or across the railways and works comprised in the undertakings of the Aberlady Gullane and North Berwick Railway Company the Eyemouth Railway Company and the Invergarry and Fort Augustus Railway Company and from time to time to alter such telegraphic lines and to enter upon the land and works comprised in such undertakings for the purposes in the Telegraph Act 1878 specified and the Postmaster-General shall after the passing of this Act be at liberty to exercise all the rights aforesaid notwithstanding that the undertakings aforesaid are owned or worked by the Company as freely and fully in all respects as he was entitled to do before the passing of this Act.

Power for Company to raise capital by shares or stock.

**78.** The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 in addition to the capital hereinbefore created or authorised raise by the creation and issue at their option of new ordinary shares or stock or new preference shares or stock or new preference shares or stock convertible into ordinary preference stock and ordinary stock or wholly or partially by one or more of those modes respectively any additional capital not exceeding in the whole six hundred and fifty thousand pounds but the Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share shall have been paid in respect thereof.

Extending provisions of Act of 1888 to preference stock convertible into ordinary stock.

**79.** All preference shares or stock convertible into ordinary preference stock and ordinary stock created and issued under the provisions of this Act or any Act or Acts relating to the Company may by agreement with the holders thereof be converted on the same terms and subject to the like conditions as all preference shares or stock convertible into ordinary preference stock and ordinary stock authorised to be created and issued under the North British Railway Act 1888.

Except as otherwise provided new shares or stock to be subject to same incidents as present shares or stock.

**80.** Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital.

The capital in new shares or stock so created shall form part of the capital of the Company.



**81.** Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called and paid on such new shares or to the whole amount of such stock as the case may be.

A.D. 1900.  
Dividends on new shares or stock.

**82.** Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Restriction as to votes in respect of preferential shares or stock.

**83.** Subject to the provisions of any Act already passed by which the Company are authorised to raise capital by new shares or stock and to the provisions of this Act and any other Act passed in the present session of Parliament whether before or after the passing of this Act by which the Company may be authorised to raise capital by new shares or stock the Company may if they think fit raise by the creation and issue of new shares or stock of one and the same class all or any part of the aggregate capital which they are by such other Act and this Act respectively authorised to raise by the creation and issue of new shares or stock.

New shares or stock raised under this Act and any other Act of past or present sessions may be of same class.

**84.** Twenty per centum on the amount of any share shall be the greatest amount of any call which may be made thereon and there shall be an interval of not less than three months between any two successive calls and the Company shall not call up more than three fourths of a share in any year.

Calls.

**85.** The Company may in respect of the additional capital of six hundred and fifty thousand pounds which they are by the section of this Act the marginal note of which is "Power for Company to raise capital by shares or stock" authorised to raise from time to time borrow on mortgage of the undertaking any sum not exceeding in the whole two hundred and sixteen thousand six hundred and sixty-six pounds but no part thereof shall be borrowed until shares for so much of the said additional capital as is to be raised by means of shares are issued and accepted and one half of such capital is paid up and the Company have proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that shares for the whole of such capital have been issued and accepted and that one half of such capital has been paid up and that not less than one fifth part of the amount of each separate share in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one half of so

Power to borrow.



A.D. 1900.      much of the said additional capital as is to be raised by means of stock is fully paid up and the Company have proved to such sheriff as aforesaid before he so certifies that such shares or stock (as the case may be) were issued and accepted and to the extent aforesaid paid up bonâ fide and are held by the persons or corporations to whom the same were issued or their executors administrators successors or assigns and also so far as the said additional capital is raised by shares that such persons or corporations or their executors administrators successors or assigns are legally liable for the same and upon production to such sheriff of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Provisions of Act of 1898 as to appointment of a receiver or judicial factor repealed.

**86.** The provisions of the North British Railway (General Powers) Act 1898 authorising the appointment of a receiver or judicial factor for principal or interest moneys due upon any mortgage of the Company are hereby repealed but subject and without prejudice to any appointment of a receiver or judicial factor or proceedings taken under or by virtue of such provisions and in force or pending at the time of the passing of this Act.

For appointment of a receiver or judicial factor.

**87.** The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver or judicial factor In order to authorise the appointment of a receiver or judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver or judicial factor is made shall not be less than ten thousand pounds in the whole.

Existing mortgages to have priority.

**88.** All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and as regards the undertaking comprised in and assigned by such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over all mortgages to be granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Company may create debenture stock.

**89.** The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 63 of the North British Railway Act 1895.

Application of moneys raised under Act.

**90.** All moneys raised under this Act whether by shares or stock or debenture stock or by borrowing shall be applied only to



the purposes of this Act and to the general purposes of the undertaking of the Company being in each case purposes to which capital is properly applicable. A.D. 1900.

**91.** The Company may from time to time apply for or towards all or any of the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable. Company may apply corporate funds.

**92.** No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation (Scotland) Act 1845. Interest not to be paid on calls paid up.

**93.** The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking. Deposits for future Bills not to be paid out of capital.

**94.** Nothing in this Act contained shall exempt any company named in this Act or the railways of such company from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by any of the said companies. Provision as to general Railway Acts.

**95.** All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.



A.D. 1900.      The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

MINUTE OF AGREEMENT between THE BORROWSTOUNNESS HARBOUR COMMISSIONERS incorporated by the Borrowstounness Town and Harbour (Amendment) Act 1878 (hereinafter called "the Harbour Commissioners") of the first part THE COMMISSIONERS OF THE BURGH OF BORROWSTOUNNESS incorporated by and duly elected and acting under the Burgh Police (Scotland) Act 1892 (hereinafter called "the Burgh Commissioners") of the second part and THE NORTH BRITISH RAILWAY COMPANY incorporated by Act of Parliament (hereinafter called "the Company") of the third part.

The parties hereto for their respective rights and interests hereby contract and agree as follows (viz.):—

First. The Harbour Commissioners agree to sell and transfer to the Company upon the terms and conditions hereinafter set forth and the Company agree to purchase and take over from the Harbour Commissioners upon the said terms and conditions the whole undertaking of the Harbour Commissioners (hereinafter called "the subjects of sale") comprising the harbour and docks of Borrowstounness and the whole lands and property of the Harbour Commissioners and houses machinery cranes and appliances appertaining thereto and all the powers rights jurisdictions authorities and privileges of and exerciseable by the Harbour Commissioners in relation to the said harbour and docks under and in virtue of the Borrowstounness Town and Harbour Act 1875 the said Borrowstounness Town and Harbour (Amendment) Act 1878 and the Borrowstounness Harbour Act 1883 and otherwise The date at which the Company shall obtain entry to and possession of the subjects of sale (which date is hereinafter referred to as "the date of entry") shall be the date of the passing of an Act of Parliament confirming these presents.

Second. As the consideration for such sale and transfer the Company shall undertake as from the date of entry and shall free and relieve the Harbour Commissioners of the whole debts liabilities contracts obligations and engagements of the Harbour Commissioners and shall in addition pay to the Burgh Commissioners at the date of entry the sum of one thousand pounds and the Company shall also pay to the said Burgh Commissioners the further sum of one thousand pounds per



A.D. 1900.

annum from the first day of August one thousand eight hundred and ninety-nine until the completion and opening of the new dock now in course of construction at Grangemouth of the Caledonian Railway Company commencing payment of the said sum of one thousand pounds per annum at the date of entry for the period preceding said date and thereafter paying the said sum of one thousand pounds per annum at the end of each year after the date of entry but declaring that on the opening of the said new dock at Grangemouth the payment of the said sum of one thousand pounds per annum shall cease but the Company will be bound to pay the Burgh Commissioners a proportionate part of said payment of one thousand pounds for the period between the date of the last payment and the date of opening said new dock and thereafter and in lieu of said sum of one thousand pounds the Company shall pay to the Burgh Commissioners the sum of two hundred and fifty pounds for the first year after the date of the opening of said dock with the addition of fifty pounds for each year from first August one thousand eight hundred and ninety-nine to the date of said opening and for the second year after the said date of opening an increase of fifty pounds upon the payment for the preceding year shall be made and a like increase shall be made each year thereafter till said payment reaches a maximum of seven hundred and fifty pounds per annum which amount shall not be exceeded in any year after the opening of said dock but provided further that in the event of a new dock being constructed at Borrowstounness the said annual payment of one thousand pounds or such other amount as may be payable shall be reduced to five hundred pounds for each year from the date of opening of such new dock at Borrowstounness.

Third. The Company shall free and relieve the Harbour Commissioners of all claims competent to the present officials of the Harbour Commissioners whose tenure of office or other rights under statute are affected by the aforesaid sale and transfer.

Fourth. The said sale and transfer shall not prejudice or affect the rights of access of the public to the said harbour for purposes of business or pleasure and as hitherto enjoyed by the public and nothing contained in this agreement shall confer upon the Company any right to levy tolls on passengers landing from and embarking on steamers or boats at the said harbour which the Harbour Commissioners do not at present possess.

Fifth. The Company shall in the session of Parliament 1899-1900 apply to Parliament in their Bill of that session for confirmation of this agreement and such Bill shall provide for the vesting of the undertaking of the Harbour Commissioners in the Company and relief to the Harbour Commissioners from all debts and obligations in respect thereto and shall contain such other provisions as may be necessary to give effect to the terms of this agreement and the parties hereto shall use their utmost endeavours to get this agreement confirmed by Parliament but no responsibility for any portion of the costs of the said Bill shall rest with either the Harbour or Burgh Commissioners and all costs and charges necessarily incurred by either the Harbour or Burgh Commis-



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sioners in connexion with the said Bill shall be paid by the Company. These presents are subject to such alterations as Parliament may think fit to make thereon but should Parliament make any alterations upon these presents or insert any provisions in the said Bill which materially affect the import and value of this agreement to the parties hereto or any of them this agreement shall thereupon become null and void and shall be withdrawn from said Bill along with the provisions therein above referred to.

Sixth. The Harbour Commissioners shall forthwith on the passing of an Act confirming these presents grant at the expense of the Company and in favour of and deliver to the Company all dispositions conveyances assignations and other writs which may in the opinion of the Company be necessary in order validly and effectively to vest the subjects of sale and every part thereof in the Company by at least as good a title as they themselves hold the same and all writs and title deeds agreements documents correspondence and other writings as relate to the subjects of sale or any part thereof shall be delivered to the Company.

Seventh. The Burgh Commissioners for all their right and interest in the premises hereby accept of the sums agreed to be paid to them as stated in article second hereof and hereby declare their entire approval of concurrence in and consent to the whole terms conditions and provisions hereof and renounce surrender and discharge all and every right which they have or may have under by or through the provisions of said Acts of Parliament or otherwise but excepting and reserving always the rights of the public contained in article fourth hereof.

Eighth. All questions and disputes which may arise between the parties in regard to the subjects of sale or the extent and boundary thereof or the true intent and meaning of these presents or the terms and conditions of any deed or writing to be granted by the Harbour Commissioners or in regard to any matter or thing arising out of or in connexion with these presents or the implement thereof are hereby referred to the decision of Alexander Asher Esquire Queen's counsel advocate whom failing Charles Scott Dickson Esquire Queen's counsel advocate whom failing of an arbiter to be named by the dean of the Faculty of Advocates for the time being.

IN WITNESS WHEREOF these presents written on this and the three preceding pages are executed in triplicate as follows viz. They are sealed with the common seal of the said Harbour Commissioners and subscribed on their behalf by Peter Hill draper Bo'ness Lewis Henderson Ballantine draper Bo'ness Richard Grant grocer Bo'ness three of the said Harbour Commissioners and Robert James Jamieson clerk to the said Harbour Commissioners and they are sealed with the common seal of the said Burgh Commissioners and subscribed on their behalf by George Cadell Stewart timber merchant Bo'ness Robert Baxter clerk Bo'ness Robert Stewart Marshall engineer Bo'ness three of the said Burgh Commissioners and the said Robert James Jamieson the clerk to the said Burgh Commissioners all at Bo'ness on the tenth day of November eighteen hundred and ninety-nine before these witnesses John Paxton Lawrie burgh surveyor Bo'ness and



Thomas James Yule clerk to the said Robert James Jamieson and they are sealed with the common seal of said railway company and subscribed by Harry George Younger brewer Edinburgh and Charles Carlow coalmaster Leven two of the directors and John Cathles the secretary of said railway company all at Edinburgh on the fifteenth day of said month and year last mentioned before these witnesses John Martin assistant secretary of said railway company and Thomas Henry Short clerk [in the] head office of said railway company Edinburgh. A.D. 1900.

|                                                      |                                                                                    |                                                                                 |
|------------------------------------------------------|------------------------------------------------------------------------------------|---------------------------------------------------------------------------------|
| JOHN P. LAWRIE<br>Witness.<br>T. J. YULE<br>Witness. |  | PETER HILL<br>L. H. BALLANTINE<br>RICHARD GRANT<br>ROBERT J. JAMIESON<br>Clerk. |
|                                                      |                                                                                    | Comr.<br>Comr.<br>Comr.                                                         |

|                                                      |                                                                                     |                                                                              |
|------------------------------------------------------|-------------------------------------------------------------------------------------|------------------------------------------------------------------------------|
| JOHN P. LAWRIE<br>Witness.<br>T. J. YULE<br>Witness. |  | GEO. C. STEWART<br>ROBERT BAXTER<br>R. S. MARSHALL<br>ROBT. J. JAMIESON Clk. |
|                                                      |                                                                                     | Burgh Comr.<br>" "<br>" "                                                    |

|                                                     |                                                                                     |                                                                               |
|-----------------------------------------------------|-------------------------------------------------------------------------------------|-------------------------------------------------------------------------------|
| J. MARTIN<br>Witness.<br>THOS. H. SHORT<br>Witness. |  | HARRY GEO. YOUNGER<br>CHAS. CARLOW<br>JNO. CATHELES<br>Secy.<br>N. B. Rly. Co |
|                                                     |                                                                                     | Director.<br>Director.<br>N. B. Rly. Co                                       |



A.D. 1900.

**THE SECOND SCHEDULE.**

**MINUTE OF AGREEMENT** between THE COMMISSIONERS OF THE BURGH OF BORROWSTOUNNESS incorporated by and duly elected and acting under the Burgh Police (Scotland) Act 1892 (hereinafter called "the Burgh Commissioners") of the first part THE BO'NESS HARBOUR COMMISSIONERS incorporated by the Borrowstounness Town and Harbour (Amendment) Act 1878 (hereinafter called "the Harbour Commissioners") of the second part THE NORTH BRITISH RAILWAY COMPANY incorporated by Act of Parliament (hereinafter called "the North British Company") of the third part and THE CALEDONIAN RAILWAY COMPANY incorporated by Act of Parliament (hereinafter called "the Caledonian Company") of the fourth part.

The parties hereto for their respective rights and interests hereby contract and agree as follows (viz.):—

First. In respect the Burgh Commissioners and the Harbour Commissioners have agreed to the North British Company taking over and acquiring the Bo'ness Harbour undertaking and the Caledonian Company have agreed not to oppose such acquisition subject to the preservation of all the rights acquired by the Caledonian Company under the Borrowstounness Town Improvement and Harbour Act 1897 subject to the terms and conditions therein provided the several parties hereto hereby contract and agree that the Caledonian Company shall during the continuance of this agreement be relieved by the Harbour Commissioners and the North British Company of all payments and liabilities under the Borrowstounness Town Improvement and Harbour Act 1897 since the commencement thereof being fifteenth July one thousand eight hundred and ninety-seven except the half yearly payments of five hundred pounds up to and including fourteenth July one thousand eight hundred and ninety-nine.

Second. Whereas the Caledonian and the North British Companies have agreed that the Caledonian Company shall discontinue for a certain period the exercise of their running powers to Bo'ness under said Act of 1897 as from first July one thousand eight hundred and ninety-nine nevertheless it is agreed that the rates for all descriptions of merchandise traffic to or from places on the Caledonian Railway and beyond from or to the harbour and docks of Borrowstounness including the branch to Bridgeness shall from and after first July one thousand eight hundred and ninety-nine and during the discontinuance of such running powers not be higher than the rates for similar traffic to or from the same places from or to the Grangemouth Branch Railway of the Caledonian Company the harbour and docks at Grangemouth and the harbour of South Alloa and the existing passenger fares between Bo'ness and Glasgow shall also during such period be continued.



Third. The North British Company hereby engage and bind themselves to work the Caledonian traffic at Bo'ness on and after first July one thousand eight hundred and ninety-nine precisely and in every respect the same as the North British traffic there. A.D. 1900.

Fourth. The Caledonian Company hereby agree to allow their empty waggon's at Bo'ness to be loaded back to collieries on the Caledonian system.

Fifth. The North British Company hereby undertake in the session of Parliament 1899 and 1900 to apply to Parliament for confirmation of this agreement.

Sixth. In the event of the Caledonian Company resuming the exercise of their said running powers to Bo'ness and Bridgeness under said Act of 1897 then the terms conditions and provisions of this agreement except in so far as then implemented or fulfilled shall of equal date with said resumption cease and determine and be of no force or effect and the whole provisions of the said Act of 1897 shall apply to the exercise of said running powers.

Seventh. All questions and disputes which may arise between the parties hereto in regard to any matter or thing arising out of or in connexion with these presents or the implement thereof shall failing agreement be determined by an arbiter to be appointed by the Board of Trade on the application of any of the parties.

Eighth. This agreement is subject to such alterations as Parliament may think fit to make thereon but should Parliament make any alterations thereon or insert any provision in the Bill confirming the same which in the opinion of Charles Alfred Cripps Queen's counsel materially affect this agreement any of the parties may withdraw from the same.

IN WITNESS WHEREOF these presents written on this and the two preceding pages are executed in quadruplicate as follows viz. They are sealed with the common seal of the said Burgh Commissioners and subscribed on their behalf by George Cadell Stewart timber merchant Bo'ness Robert Baxter clerk Bo'ness Robert Stewart Marshall engineer Bo'ness three of the said Burgh Commissioners and Robert James Jamieson clerk to the said Burgh Commissioners and they are sealed with the common seal of the said Harbour Commissioners and subscribed on their behalf by Peter Hill draper Bo'ness Lewis Henderson Ballantine draper Bo'ness Richard Grant grocer Bo'ness three of the said Harbour Commissioners and Robert James Jamieson clerk to the said Harbour Commissioners all at Bo'ness on the tenth day of November eighteen hundred and ninety-nine before these witnesses John Paxton Lawrie burgh surveyor Bo'ness and Thomas James Yule clerk to the said Robert James Jamieson and they are sealed with the common seal of the said Caledonian Company and subscribed on their behalf by Hugh Brown and Edward Cox two of the directors and John Blackburn the secretary of said Caledonian Company all at Glasgow on the fourteenth day of said month and year last mentioned before these witnesses John Johnstone Haining and John Smeaton both clerks to the said Caledonian Company in their secretary's office in Glasgow and they are sealed with the common seal of the said North British Company and subscribed on their behalf by Henry



A.D. 1900.

Grierson and Harry George Younger two of the directors and John Cathles the secretary of the said North British Company all at Edinburgh on the twenty-second day of said month and year last mentioned before these witnesses John Martin assistant secretary of the said North British Company and Thomas Henry Short clerk in the head office Edinburgh of the said North British Company.

JOHN P. LAWRIE  
 Witness.

T. J. YULE  
 Witness.



GEO. C. STEWART  
 Burgh Comr.

ROBERT BAXTER      "      "

R. S. MARSHALL      "      "

ROBT. J. JAMIESON      "      "  
 Clerk.

JOHN P. LAWRIE  
 Witness.

T. J. YULE  
 Witness.



PETER HILL  
 Chairman.

L. H. BALLANTINE  
 Comr.

RICHARD GRANT  
 Comr.

ROBT. J. JAMIESON  
 Clerk.

J. MARTIN  
 Witness.

THOS. H. SHORT  
 Witness.



HENRY GRIERSON  
 Director.

HARRY GEO. YOUNGER  
 Director.

JNO. CATHLES Secy.  
 N. B. Rly. Co.

J. J. HAINING  
 Witness.

JOHN SMEATON  
 Witness.



HUGH BROWN  
 Dr.

EDWARD COX  
 Dr.

J. BLACKBURN  
 Secy.



THE THIRD SCHEDULE.

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A.D. 1900.

AGREEMENT between THE NORTH BRITISH RAILWAY COMPANY incorporated by Act of Parliament (hereinafter called "the Company") of the first part and The Right Honourable EDMUND ARCHIBALD STUART EARL OF MORAY institute of entail in possession of the entailed lands and barony of Restalrig and others in the county of Edinburgh (hereinafter called "the second party") of the second part.

WHEREAS by agreement dated the ninth and tenth days of March eighteen hundred and ninety-one entered into between the Company and the late Right Honourable George Philip Stuart Earl of Moray it was on the narrative that the Company were promoting a Bill to authorise them to construct inter alia a railway 1 mile 3·20 chains or thereabouts in length commencing by a junction with the Company's connecting line between their Edinburgh Leith and Granton Branch Railway and their line from Easter Road Junction to Piershill Junction and terminating at or near the northern end of Leith Walk and that the said deceased Earl of Moray had petitioned against the said Bill agreed that when the land to be taken by the Company for their said railway from the said deceased earl's lands being the said lands and barony of Restalrig and others should come to be valued in the arbitration proceedings (failing a private settlement) the arbiters should be instructed to value it as feuing land and not at mere agricultural value And whereas the said agreement contained certain clauses as to accommodation works and other matters which so far as necessary are hereinafter inserted And whereas the second party is now institute of entail in possession of the said estate which was formerly owned by the said deceased earl in virtue of a deed of entail executed by the trustees of the said George Philip Stuart Earl of Moray And whereas by notice to treat dated and served on the second party fourth November eighteen hundred and ninety-six the Company took certain lands extending to three acres and one hundred and twenty-five thousandth or decimal parts of an acre being the lands delineated and coloured red on the plan annexed and subscribed as relative hereto And whereas the amount of the purchase money or compensation payable for said lands and for all damage to the remaining lands of the second party has been determined by two able practical valuers at the sum of eight thousand pounds and the second party has granted or is about to grant a conveyance of the said lands to the Company And whereas the Company desire to acquire certain additional lands part of the said estate and the second party has agreed that the Company may take immediate possession of the said additional lands which are delineated and coloured yellow on the said plan and extend to three acres and three hundred and forty-two thousandth or decimal parts of an acre or thereby and that upon the terms and conditions



A.D. 1900.      hereinafter expressed      Therefore the said parties have agreed and do hereby  
—      agree as follows :—

First. The Company shall in the next ensuing session of Parliament if they have an omnibus Bill in that session or if they have not then in the first session thereafter in which they have such Bill apply for the confirmation of this agreement and for power for themselves to take and for the second party to sell to them the said additional lands. The price of the said additional lands shall be the sum of six thousand pounds which shall include compensation for all permanent injury or damage to the remainder of said estate. The said additional lands shall be conveyed free of feu duties and casualties and the conveyance to be granted thereof shall be in the form prescribed by the Lands Clauses Consolidation (Scotland) Act 1845 and the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 so far as applicable shall apply thereto. The Company shall pay interest at five per centum on the said sum of six thousand pounds from the date of their taking possession of said additional lands and that half yearly at Whitsunday and Martinmas until the said price of six thousand pounds shall be consigned in bank.

Second. The bridge fifty feet in width at the point marked A on the plan signed as relative to the said agreement between the Company and the late Earl of Moray which bridge is also indicated on the said plan signed as relative hereto shall be lengthened so as to go over the said additional lands.

Third. The said land taken as aforesaid and the said additional lands shall be fenced by the Company with stone and lime walls five feet six inches in height or in the option of the second party to be timeously declared by him the said whole lands shall be fenced partly with stone and lime walls of the height foresaid and partly by a parapet wall and railing of a design to be approved by the second party. The said additional lands shall be used for railway lines only but not for manure or mineral or other depôts and the Company shall make a railway on the said additional lands parallel with the walls to be built on these lands and shall in terms of section 69 of the said Railways Clauses Consolidation (Scotland) Act 1845 and subject to the provisions contained and referred to in that section allow thereto connecting sidings at such places as the second party may desire should any part or parts of the second party's remaining lands be used for works and no erection shall be put on the said railway nor hoardings for advertisements after the railway has been opened for public traffic and the embankments if any of said railway shall where sidings may not be connected to the railway be planted with shrubs. Pipe sewers shall be carried across the railway to provide for drainage of the feuing lands.

Fourth. The Company shall make and shall maintain so long as required for agricultural purposes a wooden bridge twelve feet wide at the place indicated on the plan signed as relative hereto. They shall remove the said bridge when it shall cease to be required for agricultural purposes or when they shall have constructed the two bridges provided for by



said agreement between the Company and the said deceased Earl of Moray or if only one of these two have to be constructed when they have constructed that one and another bridge has been erected in terms of the said agreement on the property of Trinity Hospital near the property of the second party. A.D. 1900.

Fifth. The Company shall pay all expenses incurred by the second party in the abandoned arbitration applicable to the land already taken by the Company and in relation to the taking of the said additional lands as the same may failing agreement be fixed by the auditor of the court of session.

Sixth. The Company shall have this agreement scheduled to and confirmed by an Act to be applied for as aforesaid subject to such alterations as Parliament may think fit to make thereon but should any alteration be made on this agreement by Parliament which in the opinion of the arbiter to be appointed as after mentioned is material thereto either party may withdraw from this agreement but only as regards the said additional lands the possession of which the Company has been allowed to take meantime. If an Act of Parliament shall not be obtained by the Company as aforesaid within five years from the date or last date of this agreement then this agreement shall become null and the Company shall forthwith be bound to restore said additional land to the state in which it was before they took possession thereof to fence in manner foresaid the land already taken by them and to pay to the second party the damage occasioned to the second party by their temporary possession of said additional land as such damage shall be assessed by the arbiter to be appointed as after mentioned the second party in that event being entitled to retain in name of rent such sums as he may have received from the Company under Article First hereof. On the Company obtaining the said Act the parties will execute the necessary nomination of valuers and thereafter duly complete the transaction.

Lastly. Any disputes differences or questions which may arise between the parties as to the meaning of these presents or the rights of parties in any way arising under the same are hereby referred to a sole arbiter to be chosen by the parties or failing agreement as to an arbiter to a sole arbiter to be appointed by the Court under the Arbitration (Scotland) Act 1894 with power to the arbiter so chosen or appointed to pronounce awards interim or final. IN WITNESS WHEREOF these presents written on this and the two preceding pages and the relative plan are executed in duplicate as follows viz. They are subscribed by the said Right Honourable Edmund Archibald Stuart Earl of Moray at Edinburgh on the third day of April eighteen hundred and ninety-nine before these witnesses John Philp Wood Writer to the Signet Edinburgh and James Jasper Wilson Carmichael clerk to Melville and Lindesay Writers to the Signet Edinburgh and they are sealed with the common seal of the said railway company and are subscribed by John Howard contractor London and Randolph Gordon Erskine Wemyss of Wemyss and Torry (subscribing "R. E. Wemyss") two of the directors and John Cathles the secretary of the said railway company all at Edinburgh on the



A. D. 1900.

sixth day of said month and year last mentioned before these witnesses John Martin assistant secretary of the said railway company and Thomas Henry Short clerk in the head office of the said railway company Edinburgh.

J. MARTIN Witness.

THOS. H. SHORT Witness.

JOHN HOWARD Director.

R. E. WEMYSS Director.

JNO. CATHLES Secretary.

L.S.

J. P. WOOD Witness.

JAMES J. W. CARMICHAEL MORAY.

Witness.

J. MARTIN Witness.

THOS. H. SHORT Witness.

THE FOURTH SCHEDULE.

Describing LANDS BUILDINGS and MANUFACTORIES of which Portions may be taken without taking the Whole.

| Parish.     | Number on deposited Plans.                                                                                                                   |
|-------------|----------------------------------------------------------------------------------------------------------------------------------------------|
|             | RAILWAY No. 1.                                                                                                                               |
| Falkirk - - | 2 3 6 11 14 15 17 18 19 20 21 22 23 49 50 53 285 286.                                                                                        |
|             | RAILWAY No. 2.                                                                                                                               |
| Falkirk - - | 60 61 62 63 66 69 70 71 80 85 91 92 93 94 95 96 98 117 119 152 153 154 155 156 157 196 197 198 199 200 218 219 220 221 224 241 242 243 282A. |
|             | RAILWAY No. 3A.                                                                                                                              |
| Falkirk - - | 49 53 285 286 301 307 387 388 388A 390 392 393 394 395 397 398 399 400 401 402 403.                                                          |
|             | RAILWAY No. 4A.                                                                                                                              |
| Falkirk - - | 405 406.                                                                                                                                     |
|             | RAILWAY No. 5A.                                                                                                                              |
| Falkirk - - | 390 391 392 393 423 429 430 431 432 433 434.                                                                                                 |



| Parish.                                                        | Number on deposited Plans. |                                                                                                                       | A.D. 1900. |
|----------------------------------------------------------------|----------------------------|-----------------------------------------------------------------------------------------------------------------------|------------|
| RAILWAY No. 6A.                                                |                            |                                                                                                                       |            |
| Falkirk - -                                                    | -                          | 392 393 394 395 398 399 400 401 402.                                                                                  |            |
| RAILWAY No. 7.                                                 |                            |                                                                                                                       |            |
| Leith - - -                                                    | -                          | 21.                                                                                                                   |            |
| Duddingston -                                                  | -                          | 12 13 16 17.                                                                                                          |            |
| RAILWAY No. 9.                                                 |                            |                                                                                                                       |            |
| Glasgow - -                                                    | -                          | 9 10 11 12 13 14 15 16 17 18 20 21 34 35 36 37 39<br>40 41 42 43 44 45 46 47 48 60 61 62 63 64 65 69<br>70 71 72 104. |            |
| RAILWAY No. 10.                                                |                            |                                                                                                                       |            |
| Glasgow - -                                                    | -                          | 104 110 111 112 113 115 116 117 118 119 120 121<br>122 123.                                                           |            |
| RAILWAY No. 11.                                                |                            |                                                                                                                       |            |
| Glasgow - -                                                    | -                          | 149 150 151 156 157 158.                                                                                              |            |
| RAILWAY No. 12.                                                |                            |                                                                                                                       |            |
| Ballingry - -                                                  | -                          | 13 16.                                                                                                                |            |
| LAND TO BE ACQUIRED AT KIRKCALDY.                              |                            |                                                                                                                       |            |
| Abbotshall - -                                                 | -                          | 2 3.                                                                                                                  |            |
| Kirkcaldy - -                                                  | -                          | 2 3.                                                                                                                  |            |
| LAND TO BE ACQUIRED ON NORTH SIDE OF COLLEGE<br>GOODS STATION. |                            |                                                                                                                       |            |
| Glasgow - -                                                    | -                          | 2 4 6 7 8.                                                                                                            |            |
| LANDS AT BERWICK-UPON-TWEED.                                   |                            |                                                                                                                       |            |
| Berwick-upon-Tweed                                             |                            | 20.                                                                                                                   |            |
| LANDS AT ROODYARDS ROAD DUNDEE.                                |                            |                                                                                                                       |            |
| Dundee - -                                                     | -                          | 19 21 22.                                                                                                             |            |



THE FIFTH SCHEDULE.

A.D. 1900.

SUPERFLUOUS LANDS.

| County.          | Parish.                                                                                            |
|------------------|----------------------------------------------------------------------------------------------------|
| Edinburgh - -    | Borthwick Cramond Collinton Currie Cranston Crichton<br>Kirkliston Kirknewton Midcalder Newbattle. |
| Haddington - -   | Innerwick North Berwick Pencaitland Prestonpans<br>Whitekirk.                                      |
| Berwick - -      | Buncle Mordington.                                                                                 |
| Peebles - -      | Innerleithen Traquair.                                                                             |
| Selkirk - -      | Innerleithen Stow Yarrow.                                                                          |
| Roxburgh - -     | Crailing Eckford Galashiels Kelso Lilliesleaf Minto<br>St. Boswells.                               |
| Northumberland - | Plashetts Thornyburn Tarsett Wellhaugh Wark.                                                       |
| Cumberland - -   | Aikton Beaumont Burgh-by-Sands Caldewgate<br>Grinsdale Kingmoor Kirkandrews-upon-Eden.             |
| Lanark - -       | Bothwell Blantyre Carnwath Hamilton Shotts Maryhill<br>Cadder.                                     |
| Dumbarton - -    | Dumbarton.                                                                                         |
| Stirling - -     | Alva Balfron Slamannan Kilsyth Campsie New<br>Kilpatrick Baldernock.                               |
| Linlithgow - -   | Abercorn Carriden Livingstone South Queensferry.                                                   |
| Kinross - -      | Portmoak.                                                                                          |
| Perth - -        | Perth.                                                                                             |
| Forfar - -       | Craig Dun Inverkeillor Lunan Maryton Montrose<br>St. Vigeans.                                      |

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